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Data Protection Authority

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Introduction

"In 2023, the APD intensified the coordination of its actions with its European counterparts from the European Data Protection Committee. Emphasis was also placed on implementing a coordinated approach within its various services, in anticipation of a new organic law, voted at the end of 2023, which is intended to refine internal prioritization processes. The onboarding of new colleagues to the Management Committee and the engagement of new agents has provided a new impetus to projects that I hold dear: our awareness-raising actions towards the education sector, and the renewal of the APD's IT infrastructure."

In 2023, the APD, led by a fully constituted Management Committee since July 2023, continued its missions aimed at strengthening the privacy protection of all in a constantly evolving digital environment.

I am pleased to welcome two new colleagues to our Management Committee.

Welcome to the Director of the General Secretariat, Koen Gorissen, who is responsible for the HR, ICT, budget, public procurement, prior opinions "DPIA", international transfers, and initial triage of data breaches. He is at the helm of several major projects, including the renewal of the APD's IT infrastructure. I also wish to welcome and commend the initiatives of our Director of the Frontline Service, Anne-Charlotte Recker, who is responsible for complaint triage (admissibility) and mediation. With her team, Anne-Charlotte is revitalizing our awareness-raising actions, particularly aimed at the education and youth sectors. Thus, I signed a major contract in December 2023 to deploy educational modules EDUbox in collaboration with a major Belgian television media outlet. I hope this initiative will inspire similar efforts across the country.

I also thank the Inspector General, Peter Van den Eynde, for jointly assuming the operational leadership of these services with me from July 2022 to July 2023, while our President of the Litigation Chamber, Hielke Hijmans, continued the important mission of our sanctioning body. Notwithstanding this organizational constraint, all services of the APD, including the Knowledge Center which I direct, issued significant and numerous opinions and decisions in 2023, which are reflected in this report.

Our President of the Litigation Chamber is particularly proud of the decisions rendered in 2023: "I am very pleased that the Litigation Chamber made important and strategic decisions in 2023. For example, the FATCA decision regarding international transfers and the decision concerning baptism registers on the right to be forgotten. You will read more about this in this annual report."

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I am pleased to reflect below on a significant sanction decision made in collaboration with our European counterparts from the European Data Protection Board (EDPB) which ultimately strengthens

the protection of citizens, particularly minors. These European actions gained momentum in 2023 with tangible results such as a binding decision made on August 2, 2023, against TikTok, accompanied by a fine of 345 million euros imposed by the Irish Data Protection Authority on this platform. The focus was on a deceptive design technique used to the detriment of privacy protection and the overall protection of the youngest among us. The aim was to compel TikTok to stop encouraging minors to publish their personal data on the public part of the site.

At the same time, as a preventive action, the DPA reminded of the rules regarding information transparency, including the deceptive design techniques that must be prohibited, linking the EDPB guidelines on this matter with the DPA's enforcement actions.

As illustrated by this example, in addition to these necessary enforcement actions, it is important for us to promote - as much as possible - a good balance between our coercive and preventive actions. We committed to this in our 2023 management plan, and we have continued to pursue this ideal vision in 2025. The trend is set with, for example, the publication at the end of 2023 of a checklist on "cookies and other tracking techniques" in addition to the decisions made in this area, as well as our coordinated clarifications regarding electoral advertising at the end of 2023/beginning of 2024.

After the initial years of implementing the GDPR marked by a natural emphasis on the new sanctioning tasks of the DPA, the new cross-cutting ambition of the DPA Management Committee, which has been composed of three members since July 2022 and expanded to five in 2023, has been:

1. To quickly identify and prioritize recurring themes in terms of complaints to enable the services responsible for preventive actions to anticipate these issues and provide timely reminders of the rules;
2. To offer citizens and all stakeholders a coordinated view of the applicable rules in the areas identified as priorities in our 2023 management plan ("cookies," "elections");
3. After committing sufficient human resources to carry out the DPA's core missions, to include citizens and stakeholders as much as possible in discussions related to data protection at the stage of constructive dialogue with the DPA on the cross-cutting priorities defined by the DPA (preparation in 2023 and organization in March 2024 of a "smart cities" conference);
4. To reserve for the Litigation Chamber the disputes that deserve the most attention: in addition to the work carried out in this regard within the Litigation Chamber itself, I want to emphasize the strengthening of the role of the Inspection Service and the Frontline Service prior to any contentious decision.

This last point of action will, as expected and in any case, be facilitated by the vote at the end of December 2023 by the federal parliament of a new law amending the law organizing the DPA, which is the focus of all our attention and energy in view of its entry into force on June 1, 2024. This includes enabling the DPA to define even more effective and coordinated organizational modes. A key instrument for this purpose, the new Internal Rules of Procedure of the DPA was published at the beginning of June 2024.

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2023: Strengthening the Human Resources of the APD

From the perspective of its human resources, 2023 is the year when the APD was able to hire the new staff allocated by the Chamber at the end of 2022, in order to strengthen the APD's capacity to fulfill its core missions: to monitor but also to assist citizens, data controllers, and public authorities in the implementation of privacy and personal data protection rules. This expansion of the framework was welcome and highly anticipated given the increase in the number of complaints and legislative opinions to be handled by the Knowledge Center in 2023: a 15% increase in the number of complaints compared to the previous year, and a dramatic rise in the number of requests for legislative opinions in the context of the end of the legislature (+89%, i.e., nearly 611 compared to 250/300 opinions submitted to the Knowledge Center in 2022-2023). These new agents hired at the end of 2023 will be able to strengthen the APD in 2024 in its capacity to fulfill its core missions: to monitor but also to assist citizens, data controllers, and public authorities in the implementation of privacy and personal data protection rules, in an increasingly complex context, with the development of issues related to artificial intelligence and a new European legal framework aimed at regulating the digital space in

addition to the GDPR. At the end of 2023, the APD was once again able to benefit from an extension of its framework in order to (i) address the increase in incoming cases and fulfill the new missions of the APD such as processing integrity reports by the Inspection Service and the Litigation Chamber, and finally, (ii) continue its priority themes (e.g., "smart cities," "DPO") and (iii) respond to and anticipate, as much as possible, the needs for coordination between the APD and various authorities responsible for implementing the new European rules regulating the digital universe, including artificial intelligence. The APD also collaborates with the EDPB to assess the impact of these legislations and their interaction with the GDPR. I thank all the staff of the APD for their extreme motivation and dedication, which are indispensable support for my actions and those of the Management Committee. Together, we have overcome all obstacles to grow our organization and deliver the best service to citizens and all stakeholders. This annual report therefore presents, under the pen of their respective directors, the achievements of each of the directorates and the Management Committee with 3 members since July 2022 and with 5 members since July 2023.

Cédrine Morlière
President
and
Director
of the
Knowledge Center
On behalf of the Management Committee

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The Authority

The Data Protection Authority (APD) is the independent supervisory body in matters of personal data processing. It was established by the law of December 3, 2017 (hereinafter: "LCA"). It has a much broader range of action than its predecessor, the Privacy Protection Commission (the "Privacy Commission"). The APD is a federal body with legal personality, established with the Chamber of Representatives.

Competencies of the APD

The general mission of the APD is defined by Article 4 of the LCA as "the monitoring of compliance with the fundamental principles of personal data protection, within the framework of this law and laws containing provisions relating to the protection of personal data processing." The APD is therefore, in principle, competent not only for monitoring compliance with the General Data Protection Regulation (hereinafter: "GDPR") or general legislation relating to data protection (such as the law of July 30, 2018, relating to the protection of natural persons with regard to the processing of personal data, hereinafter: "LTD"), but it can also exercise control over compliance with other more specific legislations and regulations, such as legislation relating to cameras. However, the APD's oversight does not extend to processing carried out by courts and tribunals as well as by the public prosecutor in the exercise of their judicial function. The APD is also not competent for personal data processing carried out by police services. The APD is competent with respect to actors and bodies in the public and private sectors and has the ability to impose administrative sanctions autonomously.

Composition of the APD

According to Article 7 of the LCA, the APD is composed of a Management Committee, a General Secretariat, a Frontline Service, a Knowledge Center, an Inspection Service, and a Litigation Chamber. Both the Litigation Chamber and the Knowledge Center also include six external members who contribute their expertise to the work and deliberations of these bodies. The Management Committee of the APD has been fully constituted again since June 26, 2023, with the appointment of Anne-Charlotte Recker, Director of the Frontline Service, and Koen Gorissen, Director of the General Secretariat. In 2023, the APD was composed as follows:

Management Committee

Cédrine Morlière
President and Director of the Knowledge Center
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Peter Van den Eynde
General Inspector of the Inspection Service
Hielke Hijmans
President of the Litigation Chamber
Anne-Charlotte Recker (since June 26, 2023)
Director of the Frontline Service
Koen Gorissen (since June 26, 2023)
Director of the General Secretariat

Knowledge Center

The Knowledge Center is composed of six members and the Director of the Knowledge Center.

Yves-Alexandre de Montjoye

Bart Preneel

Nathalie Raghenon

Gert Vermeulen

Griet Verhenneman

Juline Deschuyteneer (since 07/06/2023)

Litigation Chamber

The Litigation Chamber is composed of six members and the President of the Litigation Chamber, Hielke Hijmans.

Yves Poulet

Romain Robert

Dirk Van der Kelen

Jelle Stassijns

Christophe Boeraeve

Frank De Smet

Management Committee

The competencies and activities of the Management Committee are outlined in Article 9 of the LCA and include, in addition to the approval of the annual accounts, decisions regarding the annual budget, internal organization and composition, as well as the annual management plans of the APD.

The Management Committee also has significant operational responsibility in the area of citizens' privacy protection, as in accordance with Article 63, 1° of the LCA, it can decide to refer to the Inspection Service if it finds serious indications of the existence of a practice that may lead to a violation of the fundamental principles of personal data protection. In 2023, the Management Committee exercised this power on 3 occasions. The manner in which the Management Committee identifies and addresses the existence of indications of violations as per Article 63 § 1, 1° LCA has been reviewed by the renewed Management Committee in 2022 and will be profoundly modified following the entry into force of the new LCA.

In 2023, the Management Committee met 29 times.

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Staff and Budget

At the end of 2023, the APD had 68 staff members, compared to 66 at the end of the previous year, representing an increase of 2.9%.

To finance its operations, the APD had a budget of 13,274,000 EUR in 2023 (compared to 9,993,740.56 EUR in 2022, an increase of 32.82%). The operating credits were primarily financed by the actual allocation of 13,274,000 EUR and by carryover surpluses from previous years.

Cooperation

National Cooperation and Interventions

The APD shares knowledge and information with numerous public sector actors whose competencies relate to data protection. Here are some examples:

In 2023, the APD again contributed to the SPF Justice so that it could respond to numerous parliamentary questions regarding data protection.

The APD provided significant contributions to the Secretary of State as well as to the House of Representatives in the context of the review of the draft law amending the law of December 3, 2017, establishing the Data Protection Authority.

The APD regularly collaborates at the federal level with several "sector-specific" controllers, such as the Police Information Control Body, the Committee R, and the Committee P. The cooperation protocol they concluded together serves as a guiding framework in this regard.

The APD has concluded a cooperation protocol with the Federal Ombudsman regarding the new regulation on whistleblowers.

The APD and the Belgian Cybersecurity Centre (CCB) organized an exchange of ideas on various themes related to their two areas of competence. Future legislation related to cybersecurity (e.g., NIS2) was discussed, and potential cooperation opportunities were identified.

House of Representatives of Belgium – Committee on Economy, Consumer Protection, and Digital Agenda – September 20, 2023

The APD, represented by its President, Cédrine Morlière, and the Director of its General Secretariat, Koen Gorissen, intervened in the Committee on Economy, Consumer Protection, and Digital Agenda of the House of Representatives regarding the "ethical and societal aspects of artificial intelligence."

The APD, particularly through its Knowledge Center and its Litigation Chamber, has already been called upon, or will soon be called upon, to provide opinions and make decisions on cases related to AI.

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International Cooperation

The Data Protection Authority (DPA) maintains numerous formal and informal contacts with other data protection authorities. This allows it to exchange best practices and improve its internal procedures, share expertise, resolve international issues or disputes, and ensure that rules are applied consistently and uniformly, thereby implementing the Strategic Plan 2020-2025.

The European Data Protection Board (EDPB)

The DPA has actively contributed to the work of the EDPB by participating in the following expert sub-groups and taskforces:

- Compliance, e-Government and Health (ad hoc)
- Cooperation
- Enforcement
- International Transfers
- Key Provisions (ad hoc)
- IT Users
- Strategic Advisory
- Technology
- 101 Complaints Taskforce
- Cookie Banner Taskforce
- Fining Taskforce
- Taskforce to exchange views on the international agenda on data protection
- Task Force on the interplay between Data Protection, Competition and Consumer protection
- Coordinated Enforcement Framework
- Support Pool of Experts

DPA staff have also worked as (co-)rapporteurs for the guidelines on anonymization. The DPA

regularly provides comments on drafts prepared by other supervisory authorities.

The DPA has actively contributed to the resolution of disputes at the EDPB, which is gaining importance. For example, there are binding decisions concerning TikTok (including deceptive design regarding children) and Meta (fine in the context of international transfers and an urgent binding decision on behavioral advertising).

Members of the Management Committee and DPA staff attended 15 plenary sessions of the EDPB.

Annual Conference of the Association of European Data Protection Judges 2023 – February 6 and 7, 2023

The DPA, represented by its President, Cédrine Morlière, participated in the conference held on February 6 and 7, 2023, organized by the European Association of Active Judges in Data Protection. Cédrine Morlière presented the DPA's perspective on the implementation of the GDPR across Europe.

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Spring Conference – May 10 to 12, 2023

From May 10 to 12, 2023, representatives of the DPA participated in the 31st Spring Conference of European Data Protection Authorities, organized this year by the Hungarian authority in Budapest. This event provided an opportunity for the DPA to share its knowledge, gather information, meet its European counterparts, and exchange best practices with them.

Various topics were addressed, including: the social impact of new technologies, collaboration between European authorities and authorities outside the EEA, and the relationship between Data Protection Officers (DPOs) and national data protection authorities.

The President of the Litigation Chamber of the DPA, Hielke Hijmans, also had the opportunity to present a notable paper on the role and jurisprudence of the Court of Justice of the European Union (CJEU) in data protection matters.

More details on the participants and the conference program are still available on the conference website.

International Association of Lawyers of Luxembourg - October 13, 2023

The DPA, represented by its President, Cédrine Morlière, participated in the seminar organized by the International Association of Lawyers of Luxembourg in October 2023. Cédrine Morlière spoke on the subject of harmonizing non-contentious decisions of Data Protection Authorities, specifically regarding the impact of technologies such as Artificial Intelligence.

The Global Privacy Assembly (GPA) – October 15 to 20, 2023

From October 15 to 20, 2023, the annual meeting of the Global Privacy Assembly (GPA) was held in Hamilton (Bermuda). The GPA is the global organization of privacy regulators.

At this meeting, the DPA was represented by the President of the Litigation Chamber.

The meeting paid great attention to developments in the field of artificial intelligence and its disruptive nature or not for citizens and companies, particularly regarding privacy protection. The applicability of privacy and data protection principles to artificial intelligence applications was at the center of discussions. This particularly concerns the principles of data minimization and purpose limitation.

A second important theme was the privacy protection of children and minors, within which reliable and privacy-respecting age verification tools were also discussed.

As usual, the meeting included a public part and a private part reserved for regulators. Data controllers discussed the strategic vision of the DPA, both in terms of influence on public authorities and organizations and in terms of capacity building for monitoring compliance with legislation at the international level.

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Resolutions were adopted concerning, among other things, AI in the context of work, generative AI, and health data, particularly the sharing of such data in the public interest. The GPA also adopted a resolution aimed at promoting the definition of global standards for data protection.

The President of the Contentious Chamber participated in a panel with counterpart authorities from Norway, Mexico, and South Africa on the protection of publicly accessible personal data. In the corridors, there was much discussion about the use of third-party cookies and their future, as well as online payment models.

The next meeting will take place in Jersey in October 2024.

Further information is available on the website of this conference.

In addition to the meeting in Hamilton, the APD also actively participated in several working groups of the GPA, which meet regularly online. Notably, two working groups can be mentioned: the International Enforcement Working Group, where discussions took place on the enforcement of legislation concerning companies often operating on a global scale, and the Digital Citizen and Consumer Working Group, which deals with the relationship between privacy control and other forms of control, for example in the field of competition.

Conference on Certification in Luxembourg – November 22 to 24, 2023

From November 22 to 24, 2023, representatives of the APD participated in the certification workshop organized by the Luxembourg authority in Luxembourg.

This workshop provided an opportunity for enriching exchanges with representatives from other European data protection authorities and experts in GDPR certification regarding the development, challenges, and future opportunities for GDPR certification schemes.

On the first day, several experts presented the advantages, issues, and difficulties as well as the market interest and expectations regarding the GDPR certification mechanism. Our Luxembourg counterparts also presented how the Luxembourg authority operates concerning GDPR certification. On the second day, the difference between the certification mechanism as a tool for GDPR compliance (Article 42 of the GDPR) and as a tool for transfers (Article 46 of the GDPR) was presented by our counterparts from the Italian authority. This second day also featured discussion tables and reflections (working groups) on issues related to the GDPR certification mechanism.

The third day was also dedicated to discussion tables and reflections on issues related to the GDPR certification mechanism.

More information regarding the program can be found on the website of the Luxembourg authority.

European Case Handling Workshop – November 22, 2023

Collaborators from various departments of the APD participated in the European Case Handling Workshop in Bern, Switzerland. 37 data protection authorities were present at this conference, which focused on the practical handling of complaints. An exchange of ideas took place regarding the handling of cross-border complaints and how data protection authorities should respond to manifestly unfounded or excessive complaints. Workshops were also organized on the management and processing of data breach notifications. Furthermore, the practical application of guidelines concerning deceptive designs was also addressed. Other technological and legal developments were discussed, such as facial recognition technology and the US Cloud Act.

The Francophone Association of Data Protection Authorities (AFAPDP)

The APD participated in the activities of the AFAPDP throughout the year 2023.

Other Events and Conferences

In addition to the interventions listed below, the APD participated in many other conferences, events, or training sessions aimed at exchanging views on data protection, including but not limited to: the Privacy Symposium, "Dag van de Wijkagent" ("Neighborhood Officer Day" - on the theme of camera surveillance), and the online festival Barak@TIC of digital pedagogical innovations (as part of "Je Décide").

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Headline: Even More Clarity on Cookies in 2023

Do you ever feel like your phone is listening to you? We leave daily "traces" behind us that, when aggregated, can provide a sometimes very precise idea of our interests and can thus give the impression that we are being monitored.

Among these traces are cookies, a type of "mini-file" that can be placed on a device connected to the internet.

In light of, on the one hand, the growing concern of citizens regarding this issue, and, on the other hand, the willingness of data controllers to be supported in their compliance regarding cookies, the Data Protection Authority (DPA) announced that cookies (and other trackers) would be a cross-cutting priority for the year 2023.

Thus, the DPA set to work in 2023 to create tools to raise awareness about the use of cookies and participated through the European Data Protection Board (EDPB) in harmonizing viewpoints on the subject at the European level.

Cookie Banner Taskforce

In February, the EDPB published a report on the work carried out by its "Cookie Banner Taskforce" regarding cookie banners. This report, resulting from cooperation among various European data protection authorities, is the outcome of a collaboration established to address complaints concerning cookie banners received by the organization NOYB.

The report, available in full on the EDPB website, examines among other things the practices of pre-checked boxes, misleading design, and the absence of a "reject all" button at the same level as the "accept all" button.

The DPA seized this opportunity to publish and disseminate a visual that allows different target audiences to grasp at a glance the best practices regarding cookie banner buttons.

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It also published a summary of the report for broader dissemination to the Belgian public.

Theme "Cookies" and "Cookie Checklist"

To facilitate the compliance of cookie controllers or other trackers, the DPA published in October 2023 a synthetic tool that allows for a step-by-step overview of some "do's and don'ts" related to cookies and other similar tracking mechanisms, the "Cookie Checklist."

It notably reminds that only strictly necessary cookies are exempt from consent, and that all other categories of cookies can only be placed and read if the user has consented beforehand and in a free, specific, informed, unambiguous, and active manner.

The DPA is also updating the thematic page dedicated to cookies on its website, both in the "Citizens" section and in the "Professionals" section.

These contents are the result of collaboration among all DPA services, crystallizing various expertise and taking into account the multiple facets of compliance regarding cookies and trackers.

Guidelines on the Scope of Application of Article 5(3) of the ePrivacy Directive

In November, the EDPB published guidelines regarding the scope of application of Article 5(3) of the ePrivacy Directive, which will allow data controllers to better understand which tracking techniques, beyond cookies, are covered by the directive. These guidelines provide greater clarity regarding cookies and other trackers, contribute to better protection for users of internet services, and offer increased legal certainty for data controllers.

In Practice

In addition to these awareness-raising and support efforts arising from internal collaboration within the DPA (among services) or external collaboration (with other European data protection authorities), the DPA also concretely applied the rules regarding cookies and other trackers in 2023, notably in its compliance monitoring tasks for data controllers (see chapter "Transactions of the Contentious Chamber – The Transaction Policy and the 'Cookie Checklist'"), as well as by updating the cookie banner on its own websites.

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Themes of the Year

Theme 1: DPO

In its role as an advisor on data protection within an organization, the Data Protection Officer (or DPO) is, in a sense, the guardian of citizens' personal data on the ground. This role is therefore essential for moving towards a society where privacy is a reality for all. The DPO is also an ally of the Data Protection Authority (DPA). For the DPA, it is extremely important to support the DPO in their mission, particularly by providing practical tools.

In 2023, the DPA engaged in dialogue with stakeholders to implement its priority "Data Protection Officers" with a view to identifying their needs and proposing concrete solutions. For example, a meeting between the President and professional associations of DPOs identified the need for a common skills framework. This finding subsequently motivated a legislative recommendation in 2024 from the Knowledge Center encouraging the legislator to establish a certification mechanism for DPO training similar to that of French law.

At the same time, the Inspection Service and the Litigation Chamber continued to carry out their questioning actions aimed at promoting the consideration of the DPO's independence and the necessary allocation of resources, including the time that the DPO can dedicate to data protection issues and training requirements.

DPODay – May 25, 2023

On May 25, 2023, the 5th anniversary of the GDPR provided the DPA with an opportunity to pay tribute to the data protection officers of the country during DPODay organized by the professional associations DPO PRO, DP Institute, and Isaca. The President of the DPA, Cédrine Morlière, was able to discuss issues such as the need for official recognition of a skills framework for DPO training or the difficulty of publishing a register of DPOs registered with the DPA. This latter observation motivated a legislative recommendation in 2024 from the Knowledge Center encouraging the legislator to establish a certification mechanism for DPO training similar to that of French law (Opinion 41/2024 of April 26, 2024). The Authority believes that the federal legislator should consider an appropriate legal framework to enable the establishment of certified data protection training in the context of receiving and processing breaches of integrity, similar to the legal framework provided in France, subject to any constraints related to the specific Belgian legal framework on certification. The Authority seizes the opportunity of this annual report to highlight this recommendation in order to lay the groundwork for a debate on this subject. At the same time, the Inspection Service continued to carry out its questioning actions aimed at promoting the consideration of the DPO's independence and the necessary allocation of resources, including the time that the DPO can dedicate to data protection issues and training requirements. The Litigation Chamber has also rendered several decisions in this regard.

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Decisions

The Data Protection Authority has identified DPOs as one of its priorities for 2023, and the decisions of the Litigation Chamber addressing this issue are listed below.

Decision on the merits 110/2023

In this decision, the Litigation Chamber provided an in-depth commentary on the obligation to appoint a DPO, in accordance with Article 37.1.a) of the GDPR. This provision requires that a public authority or public body appoints a DPO. It also assessed whether the tasks of the DPO could be adequately performed. In this case, it was found that the DPO did not have sufficient resources to advise the data controller on implementing the necessary safeguards provided by data protection legislation to assist and support data subjects in exercising their rights on one hand, and to prevent violations of data protection legislation on the other hand. The number of hours allocated on an annual basis was insufficient for a structural cooperation to be established between the data controller and the DPO.

Decision of dismissal 116/2023

The complaint concerns an alleged conflict of interest on the part of the DPO of an insurance company. In this decision, the data protection authority emphasizes that there is no fixed list of functions incompatible with the role of DPO and that a case-by-case examination is always necessary.

Event Preparations for DPOs

Whether in its strategic plan 2020-2025 or in its priorities for 2023, the DPA has continuously reiterated the importance of the DPO role. By the end of 2023, it undertook preparations for an information session entirely dedicated to DPOs. The event took place in February 2024.

Theme 2: Awareness

In 2023, the Authority continued its awareness-raising actions towards its audiences:

Children and Youth: www.jedecide.be

In 2023, technological advancements regarding the processing of personal data play a significant role, particularly among children and youth.

The initiative 'I Decide' is based on the idea that the privacy of our children and youth can only be guaranteed if they are aware of its importance.

All 'I Decide' activities aim to show young people how to adopt a respectful attitude towards privacy.

The main information channel for 'I Decide' is its website www.jedecide.be. This site contains information on personal data protection, tailored to different target groups: young people, parents, and educators. With Gustave the hedgehog, young people discover how to better...

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to protect their personal data. The way the 'I decide' initiative has been designed in recent years has had a significant impact on this target group. Thanks to this 'I decide' initiative, the DPA has received various awards; 'I decide' has also obtained the "watwat" label in Flanders, a label granted to tailored information projects for young people, presented in an accessible and understandable format for this audience.

Although informing young people about data protection is an important mission of the DPA, as it is explicitly included in all of its tasks outlined in the legislation (art. 22, § 1, 3° of the LCA and art. 57.1.b) of the GDPR), the DPA has found that over the years, it has become increasingly difficult to develop new themes, information campaigns, educational materials, etc., through 'I decide' due to a lack of operational resources.

Due to this lack of resources, the operation of 'I decide' relied entirely on "volunteers," as the 'I decide' working group consisted of DPA staff who performed tasks related to 'I decide' in addition to their functional tasks within the DPA.

Since the last quarter of 2023, following new commitments and the appointment of the service director, the mission of raising awareness among young people has been able to be taken over again by the DPA's Frontline Service.

The website jedecide.be continues to be an important tool in this context, alongside other initiatives launched as part of the resumption of the awareness mission within the DPA's Frontline Service.

In this context, the Frontline Service responds to information requests that come through this tool. It also updates and develops new content for the site. Furthermore, it distributes educational materials developed and made available by the service to educational institutions. Through these channels, the 'I decide' initiative aims to encourage young people and students to critically engage in the debate on privacy and to form their own opinion on the importance of protecting their personal data.

In 2023, the Frontline Service also began partnerships with other awareness-raising actors and is preparing several collaborative projects in this context.

The service has also initiated bilateral dialogues with data protection authorities from other European countries to exchange best practices in the field of youth awareness.

Finally, to increase its visibility among teachers, the 'I decide' team presented a workshop at the online festival of digital pedagogical innovations Barak@TIC 2023.

The general public

As part of its information and awareness mission, the Frontline Service carries out educational work to disseminate legal and technical information aimed at the public, both for citizens (with particular attention to young people) and for data controllers and processors. The Frontline Service continues and intensifies its efforts in this mission, which constitutes one of the priorities for the service.

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This is structured around several axes:

- Update and develop tools such as thematic pages and FAQs on the APD website, to inform the public clearly and precisely about legally complex themes. This includes drafting general information sheets on the most commonly addressed themes in information requests from concerned individuals and data controllers.
- Update and develop tools aimed at data controllers and processors, as well as certain target groups, to inform them clearly and support them in developing and maintaining their compliance with data protection law. This includes drafting and updating information sheets and FAQs for their attention, providing reference tools for DPOs or SMEs, as well as through meetings with target groups. In this context, the service has notably prepared a conference for data protection officers held in early February 2024, as well as GDPR training for various stakeholders. The service has also prepared the establishment of a directory of decisions (from the APD's Litigation Chamber, the Market Court, as well as the Court of Justice of the European Union) concerning the role of Data Protection Officer. This directory is made available on the APD website and is kept up to date by the service.
- While prioritizing the provision of accessible information to all through thematic pages, FAQs, and tools offered on the APD website, the Frontline Service also responds to questions posed by the public via information requests, to a reasonable extent, and in a strategic manner. In 2023, the service received 2,686 written information requests and 465 oral information requests via telephone calls. These questions come from a very diverse audience, ranging from citizens to corporate lawyers, data protection officers, as well as academic researchers and political leaders. In this context, the Frontline Service regularly analyzes the topics recurring in the information requests received, in order to produce new thematic pages addressing inquiries for which the APD website does not yet present a thematic page.

Theme 3: Artificial Intelligence

The APD, represented by its President, Cédrine Morlière, and the director of its General Secretariat, Koen Gorissen, intervened in the Commission for Economy, Consumer Protection, and Digital Agenda of the House of Representatives on September 20, 2023, regarding the "ethical and societal aspects of artificial intelligence."

After acknowledging the potential of artificial intelligence technologies, the APD discussed the means at its disposal based on the GDPR to ensure oversight. Thus, when AI leads to automated decisions made based on an algorithm (dismissals, denial of credit, tax audits, etc.), data protection authorities can, if necessary, sanction the lack of transparency of the decision or its *modus operandi* when it relies on erroneous correlations, or on confirmation biases/discriminations.

Particular attention must be paid to the increased risk posed by data processing carried out using self-learning adaptive parameters known as...

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"machine learning," heavily criticized by the Court of Justice of the European Union (judgment PNR of June 21, 2022; C-817/19).

Through its Knowledge Center, the APD has already issued several opinions on legislative projects involving such data processing by the administration, for purposes of control or allocation of benefits, etc.

The APD generally recommends assessing risks in order to consider the best safeguards to be implemented based on the proposal for a European Regulation concerning artificial intelligence, in addition to basic recommendations aimed at ensuring the quality of data that drives algorithms, avoiding correlation errors, and evaluating the impact of technology on the rights and freedoms of affected individuals.

New questions are raised by facial recognition and so-called "generative" content AIs (chatbots), particularly regarding the legal basis for the collection of source data. The APD is currently handling complaints against chatbots, which are under investigation.

Activities by Directorate

General Secretariat

The General Secretariat has a dual role within the APD.

On one hand, it performs several horizontal tasks, such as managing the support services of the APD – namely IT, accounting, human resources, the data protection officer, reception, and translation services – as well as managing internal and external communication. In 2023, the following actions were notably undertaken in support of the activities of the entire APD:

The staff status of the APD has been updated;

The staff framework – which was increased by 20 FTE at the beginning of this year following a decision by the House of Representatives – has been fully completed after the conclusion of recruitment procedures.

Preparatory work has been carried out with a view to replacing the document management system (Document Management System). Specifically, a needs analysis has been conducted, and a special specifications document has been drafted, which will be published in early 2024 as part of a public procurement procedure.

On the other hand, the General Secretariat also performs several substantive tasks. For 2023, the General Secretariat wishes to highlight the following essential achievements:

International Transfers

One of the competencies of the General Secretariat regarding international transfers is the approval of binding corporate rules, or "BCR" (for "Binding Corporate Rules"). In 2023, 4 new BCRs were thus approved, and the decisions are now published.

The SG has also supported its European counterparts several times during the co-review and cooperation phases of BCR.

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for which other supervisory authorities acted as lead authority.

In June 2023, the EDPB, of which the DPA is a member, published the final version of the "Recommendations 1/2022 on the Application for Approval and on the elements and principles to be found in Controller Binding Corporate Rules (Art. 47 GDPR)." This new document incorporates additional requirements (following, in particular, the "Schrems II" ruling of the CJEU – see below) and merges the old framework (WP256 rev. 01) with the old application form (WP 264). It now applies to groups wishing to submit BCR-C, i.e., binding corporate rules for controllers.

Subsequently, the DPA informed the concerned groups that they would need to bring their BCR-C into compliance with the new recommendations during the year 2024. Any new BCR-C introduced from January 1, 2024, must also take this into account.

In general, the General Secretariat continued in 2023 to actively contribute to the various works of the EDPB regarding international data transfers.

The General Secretariat notably followed up on discussions concerning the adoption by the European Commission of a new adequacy decision regarding the United States ("US-EU Data Privacy Framework," or "DPF"). This decision, ultimately adopted on July 10, 2023, concludes that the United States provides a level of protection essentially equivalent and follows the previous "Privacy Shield," which was annulled by the CJEU in 2020 (the "Schrems II" ruling). It should be noted that the adequacy decision only applies to transfers of personal data from the EU to organizations located in the United States that participate in the DPF.

More information as well as the text of the new adequacy decision can be consulted on the DPA's website.

It is also worth mentioning that the EDPB began in 2023 to work on the establishment of a new transfer tool provided for by the GDPR: certification as a transfer tool (Art. 46(1)(f) GDPR; not to be confused with certification as a compliance tool under Art. 42 and following GDPR).

Coordinated Action 2023 of the EDPB

The DPA participated in the second annual coordinated action of the EDPB organized under the

"Coordinated Enforcement Framework." This second edition focused on the designation and role of the Data Protection Officer ("DPO").

During the year 2023, 25 supervisory authorities in the European Economic Area (EEA) (including the European Data Protection Supervisor) launched coordinated investigations on this theme. Various organizations as well as were contacted in the EEA, covering a wide range of sectors (public and private entities), and more than 17,000 responses were received and analyzed. A significant amount of data was collected, providing useful insights into the profile, position, and work of DPOs five years after the GDPR came into effect. For its part, the DPA decided to conduct a large-scale survey of all DPOs for whom they have contact details. The hundreds of responses provided by DPOs in Belgium were used to draft a national report.

The results of the national surveys were then analyzed in a coordinated manner, and the EDPB published a report on the findings of this analysis. In order to address the challenges identified in the report, it lists recommendations to

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the intention of organizations, DPOs, and supervisory authorities, among others, to strengthen the independence of DPOs and ensure they have the necessary resources to carry out their tasks. A summary of this report and the observations of the DPA is available on the DPA's website.

Data Breach Processing

In 2023, it appeared that ransomware attacks particularly affected Belgian cities and municipalities. In the 2022 annual report, we somewhat nuanced this fact by highlighting the global nature of this type of data breach, both in the private and public sectors.

In this context, the DPA examined this type of data breach in its ninth newsletter, in the recurring section "Recommendations to Avoid Data Breaches." This primarily emphasized a programmatic and structural approach. The DPA thus advises developing an incident response plan and/or a disaster recovery plan, monitoring compliance with them, and updating them. Additionally, targeted phishing exercises and awareness campaigns are also necessary. It is also essential to inventory the various hardware and software components and keep them updated. Organizations are indeed still victims of documented vulnerabilities, such as LOG4J. Furthermore, organizations must know what personal data is retained and where it is located. If this data is no longer necessary to achieve the purpose, it must be deleted or anonymized (see DPA recommendation 03/2020).

In its tenth newsletter, the DPA also provided some practical advice. It addressed the issue of insufficient protection of online testing environments, as well as the processing of personal data contained in a paper file or expected to be included in one. Finally, organizations were urged to remain vigilant during holidays, as recurring peaks in data breaches are observed in the lead-up to or during holidays.

Finally, the final version of the "targeted update of the Guidelines on Data Breach Notification," which had been subject to public consultation in October 2022, was published by the EDPB on April 4, 2023. The DPA acted as co-rapporteur for these Guidelines.

Monitoring Societal, Economic, and Technological Developments Impacting Personal Data Protection
The General Secretariat monitors social, economic, and technological developments that may impact personal data protection and reports on this to the DPA's Management Committee.

Under this competence, the development of purchasing products and/or services using personal data as a "means of payment," for example, was addressed in consultation with controllers from other European member states.

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The DPA also published a "Cookie Checklist," a tool designed to encourage the correct use of cookies.

Achievements in Numbers

In 2023, the General Secretariat processed 10 approval files.

Type of File

Result

Number

BCR (binding corporate rules)

Approved

4

Processing halted (by the applicant)

3

File inadmissible

1

DPIA (data protection impact assessment)

Opinion issued

1

File inadmissible

1

Total

10

In 2023, the General Secretariat prepared 1,080 files related to data breaches. In several cases, these files were placed on the agenda of the Management Committee, after which 3 files were forwarded to the DPA's Inspection Service. In the context of initiative files, the General Secretariat contacted a data controller based on a signal it had picked up regarding a presumed data breach that had not been reported.

Type of File

Result

Number

Data breach reported by
the data controller

Cancellation of the notification

8

No serious breach found following
the analysis of the notification

1001

No serious breach found after
analysis of the notification and contact
with the data controller

68

Data breach file initiated

by the General Secretariat

Forwarded to the Inspection Service via the
Management Committee

3

Total

1080

Frontline Service

The Frontline Service is in direct contact with citizens, data controllers, and processors, and serves as both the entry point and the pulse of the DPA.

It receives requests addressed to the Data Protection Authority. It processes information requests, with particular attention to the exercise of rights by the data subjects. It conducts mediations and attempts to reconcile the parties by encouraging a solution that complies with data protection law and is satisfactory for the parties involved. It receives complaints, examines their admissibility, and informs

the complainant in case of inadmissibility.

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The Frontline Service also plays a key role in the awareness-raising mission of the Data Protection Authority (DPA) regarding the importance of the right to data protection, as highlighted in the General Data Protection Regulation (GDPR) as well as in the Law establishing the DPA ("LCA"). Through its awareness efforts, the Frontline Service contributes to a digital world in which privacy is a reality for all. The service promotes data protection among citizens, data controllers, and processors, paying specific attention to minors, and raising awareness among data controllers and processors of their obligations. In cases of suspected serious violations, the Frontline Service may propose to the Management Committee to assess the situation so that binding measures can be considered by the competent services of the DPA.

The Frontline Service also ensures direct accessibility for citizens to the DPA, by providing a telephone hotline and responding to questions raised on this occasion.

Informing and Raising Awareness

As part of its mission to inform and raise awareness, the Frontline Service carries out educational work to disseminate legal and technical information to the public, both for citizens (with particular attention to young people) and for data controllers and processors. The Frontline Service continues and intensifies its efforts in this mission, which constitutes one of the priorities for the service.

This is structured around several axes:

- Updating and developing tools such as thematic pages and FAQs on the DPA's website, to inform the public clearly and precisely about legally complex themes. This includes drafting general information sheets on the most commonly addressed topics in information requests from data subjects and data controllers.
- Updating and developing tools aimed at data controllers and processors as well as certain target groups to inform them clearly and support them in developing and maintaining their compliance with the right to data protection. This includes drafting and updating information sheets and FAQs for their attention, providing reference tools for Data Protection Officers (DPOs) or SMEs, as well as through meetings with target groups. In this context, the service has notably prepared a conference for DPOs held in early February 2024, as well as GDPR training for various stakeholders. The service has also prepared the establishment of a repository of decisions (from the DPA's Litigation Chamber, the Market Court, as well as the Court of Justice of the European Union) concerning the role of DPOs. This repository is made available on the DPA's website and is kept up to date by the service.
- While prioritizing the provision of accessible information for all through thematic pages, FAQs, and tools offered on the DPA's website, the Frontline Service also responds to questions posed by the public through information requests, to a reasonable extent and in a strategic manner. In 2023, the service received 2,686 written information requests and

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465 requests for oral information via telephone calls. These questions are posed by a very diverse audience, ranging from citizens to corporate lawyers, data protection officers, academic researchers, and political leaders. In this context, the Frontline Service regularly analyzes the topics that recur in the information requests received, in order to produce new thematic pages addressing inquiries for which the APD website does not yet have a thematic page.

Strengthening awareness and understanding among minors, as well as their parents and teachers, about the importance of data protection. This is achieved notably through the updating and development of the website jedecide.be aimed at minors, parents, and teachers, by disseminating educational materials developed and made available by the service to educational institutions, meetings with these target groups, as well as enhanced consultation with other active players in the digital education sector. In 2023, the Frontline Service began partnerships with other awareness-raising actors and is preparing several collaborative projects in this context. Additionally,

training on the best ways to produce communication content aimed at young people is being undertaken within the service.

The service has also initiated bilateral dialogues with data protection authorities from other European countries to exchange best practices in the area of youth awareness.

Analyze Complaints

The Frontline Service receives incoming complaints at the APD and examines their admissibility. The service focuses its efforts on enhancing the efficiency of the process for receiving and identifying complaints and mediation requests.

In this regard, since the last quarter of 2023, the service has been working to improve support for citizens who have filed a complaint by proposing mediation in cases that lend themselves to it, following analysis. In the event of dissatisfaction with the resolution of the dispute at the end of mediation, a transition to contentious proceedings will occur.

The establishment of this procedure will facilitate the handling of these cases at the Frontline Service, in order to respond as qualitatively and effectively as possible to the needs of the complainants. This will allow for a quicker resolution of the submitted disputes and will also reduce congestion in the Litigation Chamber and the Inspection Service related to the volume of complaints. This procedure will thus increase the effectiveness of personal data protection.

Conduct Mediation

The Frontline Service handles mediation requests. Since the end of 2023, the service has been working to increase the impact of mediations in resolving submitted disputes and to make this mechanism more visible in order to increase the number of mediations conducted and concluded.

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The service is preparing to strengthen the mediation procedure, notably through a reminder of the rights and obligations of the parties, and guidance on how to comply for data controllers or processors, as well as clarification of the ins and outs of the contentious procedure in the event of a lack of agreement in the context of mediation. The visibility of mediation as an alternative to contentious proceedings will also be enhanced.

Achievements in Numbers

In 2023, the Frontline Service closed 2,686 information cases. In 2,565 cases, the individual received a response. In 71 cases, the APD was not the competent authority or no response could be given. In 50 cases, the case was closed (often because the individual no longer responded to the request for additional explanations following the initial request).

Type of Case

Result

Number

Information

Information provided

2,565

Authority

not

competent

(with

referral

or

not)/case not admissible

71

Case closed

50

Total

2,686

The Frontline Service also handled 465 telephone calls in 2023.

In 2023, the APD closed 132 mediation cases. Among these, 59 resulted in a successful mediation thanks to the intervention of the Frontline Service. In 22 cases, the mediation was transformed into a complaint transferred to the Litigation Chamber. The handling of 28 cases was closed by the Frontline Service. 26 cases did not meet the admissibility requirements, and in 2 cases, the Frontline Service considered that the APD was not competent.

Type of Case

Result

Number

Mediation

Successful mediation

59

Unsuccessful mediation

12

Mediation transformed into complaint

22

Case not admissible

26

APD not competent

2

Case closed (by the applicant)

11

Total

132

When a complaint is filed with the APD, the Frontline Service analyzes its admissibility. In 2023, the Frontline Service analyzed the admissibility of 694 complaints. It turned out that 254 complaints were inadmissible. Only admissible complaints are transferred to the Litigation Chamber for further processing.

Knowledge Center

The Knowledge Center is tasked with issuing, either on its own initiative or at the request of governments or parliaments:

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of opinions on any matter relating to the processing of personal data (including in the context of drafting normative text projects); and

recommendations regarding societal, economic, and technological developments that may impact the processing of personal data.

The Knowledge Centre consists of a director and six external members appointed by the Chamber based on their specific expertise to ensure a multidisciplinary approach, both legal and technical.

The increasing number of requests for opinions received from governments and parliaments poses a challenge for the Knowledge Centre: nearly 611 requests for opinions were received in 2023. By comparison, the DPA received nearly 323 requests for opinions in 2022 and nearly 287 in 2021.

In this context, the Knowledge Centre has no choice but to prioritize legislative opinions at the expense of recommendations. As explained below, standard opinions and, at times, extensions of opinion deadlines, are essential management tools. The sorting of legislation submitted for opinion also consumes significant energy from the service (prima facie legal screening).

Regarding recommendations, while awaiting a more favorable period for initiative recommendations, the Knowledge Centre includes general recommendations related to societal, economic, or technological developments in its legislative opinions. The Knowledge Centre also participates in drafting recommendations at the European level, within the framework of the work of the European Data Protection Committee.

Below is an overview of the most significant Opinions and Recommendations of this year, followed by an explanation of the prioritization method for the record number of legislative opinion requests received in this final year of the legislative term.

Opinions

The non-binding opinions of the Knowledge Centre aim to enlighten the legislator and draw attention to potential issues related to the quality of the proposed legislation in light of personal data protection rules (e.g., predictability of the standard in terms of the purpose of data processing, categories of data processed, adequate legal basis, etc.). The legislator then has the opportunity to adapt their text to take into account the remarks made by the Knowledge Centre.

The opinions of the Knowledge Centre are available on the DPA's website.

In 2023, the Knowledge Centre examined numerous projects impacting the daily lives of citizens, such as a draft order from the Walloon Government concerning the pricing methodology for smart meters, the support file for students in the Wallonia-Brussels community, or a decree modifying the organization of education in the Flemish region.

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■ Opinion 132/2023 of September 8, 2023, concerning the decree amending the decree of April 12, 2001, relating to the organization of the regional electricity market, amending the decree of January 19, 2017, relating to the tariff methodology applicable to gas and electricity distribution network operators, and amending the decree of September 17, 2020, relating to the granting of a bonus for the installation of measurement and control equipment.

The Authority recalled that smart electricity meters are particularly intrusive as they allow for the inference of potentially sensitive data regarding the behaviors of residents in buildings where such meters are installed, specifically if they communicate electricity consumption data related to short periods.

For more details: Smart meters can allow for precise determination of the types of electrical devices (including medical ones) that are in operation, when they are used, and for what duration they have been used, the number of people present in the residence, the periods during which they are at work or on vacation, or even when they are sleeping, whether they sleep well or poorly, the periods during which residents go out to eat or leave a child home alone, or receive guests at home, etc.

Therefore, the Authority specifically recommended that the legislator expressly limit the level of detail of consumption data that can be communicated to Distribution Network Operators ("DNOs") by smart meters to electricity consumption data occurring over periods no shorter than 15 minutes.

■ Opinion No. 85/2023 of April 27, 2023, on the draft decree relating to the digitization and operationalization of exceptional maintenance procedures applicable during the student's journey in the common core.

Should a setback during one or two school years follow you throughout your education? Can the organizing authority of a school have access to all the data included in students' files? Can information inserted in a file be deleted before the person concerned has even had the chance to be aware of it? How can the right to rectification regarding assessments (subjective personal data) be exercised?

Opinion 85/2023 from the Knowledge Center attempts to answer these questions and addresses a series of recommendations to the legislator regarding the use of a shared information system among various stakeholders in Education (schools, parents, adult students, inspection, PMS centers, etc.).

For more details: In this information system, referred to as the 'student support file' (DAccE), information related to each student's educational journey, from the first year of kindergarten to the end of secondary education, including those related to procedures impacting their educational journey, is centralized. The opinion specifically addresses the procedures for maintaining a student in their school year (repeating a year). The conclusions of this opinion have been largely incorporated into the opinion issued.

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subsequently by the Council of State regarding this same legislation (opinion 73.507/2 of June 5, 2023).

■ Opinion No. 156/2023 of November 20, 2023, concerning new articles included in the draft decree of the Flemish Government regarding education

The Knowledge Center examined a draft decree from the Flemish Government related to the modification of qualifying training pathways, organizing automatic data exchanges of students from lower education. While the purpose of the processing was clearly identified (calculation of the funding for educational institutions), it was necessary to identify the recipients of this data and specify which data is being processed.

In 2023, the Knowledge Center devoted significant energy to scrutinizing projects related to the establishment of new service integrators aimed at organizing mutual data exchanges between participating administrations. This included managing access to authentic data sources from public services and ensuring the security and traceability of the use of personal data collected within these sources.

The Knowledge Center identified new paradigms of data exchange between administrations, which, in its opinion, could potentially contradict the necessary predictability of the purposes for which such exchanges would be carried out.

■ Opinion No. 143/2023 of September 29, 2023, concerning a draft decree approving the cooperation agreement between the Walloon Region and the French Community designating the service integrator of the Walloon Region and the French Community and a draft cooperation agreement relating to the creation of the common service for the Walloon Government and the French Community, named Data Exchange Carrefour Bank

The Knowledge Center took note of the initiative aimed at clarifying the framework for data exchanges from the Walloon administration and the French Community. However, the Knowledge Center insisted that the legislator at least provide for a government order to be adopted to (i) qualify a data bank as an authentic data source (not leaving this initiative to the discretion of the administration without transparent and predictable legal framework), and (ii) define the essential elements of data processing carried out through an authentic source to ensure the quality of the data and the predictability of collections and exchanges for the citizen.

■ Opinion No. 154/2023 of October 20, 2023, concerning a joint draft decree and ordinance regarding the Brussels Code of Governance and Data

These draft texts aimed to codify administrative transparency (or publicity of the administration), the reuse of public sector information, and the exchange of data between public authorities (including from authentic sources and databases derived from authentic sources).

It further establishes a database derived from authentic sources.

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major Brussels municipalities, "Brussels UrbIS." A significant centralization of data was planned.

The Knowledge Center notably expressed surprise at the mechanism proposed for facilitating exchanges: the establishment of databases derived from authentic data sources and administrative data sharing by default "unless such administrative sharing is contrary to a legal rule [...]"

For more details: The Knowledge Center emphasized that such provisions overturn the legal paradigm currently applicable to the processing of personal data under Belgian law in accordance with the principles of legality and predictability enshrined in Articles 8 ECHR and 22 of the Constitution: personal data processing can only take place when it is legally grounded within the framework of a competence or obligation assigned to a public authority and that its essential elements are determined by a norm of legislative rank.

The Knowledge Center reminded that a memorandum of understanding between administrations is not sufficient to legally ground a data exchange between public authorities.

The legislative framework must provide clarity and predictability to the citizen. The citizen is concerned and files complaints when it turns out that their data is processed in a manner that does not meet their

expectations by the public administration, as illustrated below.

■ Opinion No. 153/2023 of October 20, 2023, on a draft royal decree amending the royal decree of July 8, 2013, implementing the law of May 19, 2010, establishing the Vehicle Crossroads Bank
On October 20, the Knowledge Center of the Authority issued an opinion on a draft royal decree amending the royal decree of July 8, 2013, implementing the law of May 19, 2010, establishing the Vehicle Crossroads Bank (VCB).

For more details: This draft extension of the purposes of the VCB follows a substantive decision by the Litigation Chamber of the Authority dated June 23, 2020. Following this decision, the communication of data from the VCB was declared contrary to Articles 5.1.b and 6.1 of the GDPR by the SPF Mobility and Transport to a private company. This communication allowed certain insurance companies to establish personalized automobile insurance proposals for their clients, which led to a complaint to the Litigation Chamber from a citizen concerned about the origin of the data processed in the context of these commercial proposals.

The draft royal decree submitted for opinion extends the purposes of using VCB data to commercial purposes. If such an extension of the VCB were to be duly justified, the Authority recommends a series of adaptations and specific guarantees to be provided in the legislative norm to be adopted for this purpose.

The Knowledge Center is regularly led to draw the legislator's attention to the imprecision of bills or regulatory standards related to the processing of

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health data, particularly regarding the purposes of processing public or private data, both at the federal level and for the federated entities.

■ Opinion No. 127/2023 of September 8, 2023, concerning the amendment of the law of August 21, 2008, relating to the establishment and organization of the eHealth platform and various amendments to the law of January 29, 2014, concerning provisions related to the social identity card and the ISI+ card.

The draft law aims to allow the creation of a reference directory (indicating which types of (health) data of which patient are available from which healthcare actors) without the prior consent of the patient.

Only the consultation/provision of the reference directory is still subject to the patient's consent.

The Knowledge Center has strongly urged the legislator to clarify several crucial notions and concepts such as 'healthcare actor', 'sectoral reference directory', purpose of processing, types of data processed, retention period, data controllers, and third-party recipients.

The Knowledge Center has deemed it necessary to clarify all these points, excluding in any case the use for commercial purposes and preferably explicitly limiting third-party access to healthcare professionals who have a therapeutic relationship with the patient concerned, by analogy with how the law on the quality of healthcare practice of April 22, 2019, governs access to health data.

■ Opinion No. 88/2023 of May 17, 2023, concerning a draft decree of the Flemish Government implementing the decree of July 8, 2022, establishing the Vitalink platform (available only in Dutch). The opinion of the Knowledge Center was requested regarding a draft decree of the Flemish Government implementing the decree of July 8, 2022, establishing the Vitalink platform (namely a health vault). The Knowledge Center has found that both the Vitalink decree (on which it was not consulted beforehand, despite the opinion of the Council of State on the matter) and the draft decree implementing it present serious shortcomings as a regulatory framework for Vitalink as well as in terms of the related data processing, as they do not comply with the applicable principles of legality and predictability.

The imprecision regarding the scope of several essential notions and concepts compromises the readability and predictability of the Vitalink decree (and its implementing decree); its reading does not allow, either for the Knowledge Center or for the individuals concerned, to clearly foresee and understand which data processing will be carried out and under what conditions these processes will be authorized. The indication by the applicant that it cannot be excluded that the use of the Vitalink platform may become mandatory in the future makes the aforementioned findings even more

problematic.

The lack of precision regarding the intended purposes also prevents a proper analysis of the proportionality of the proposed processing. The categories of recipients of this vast set of extremely sensitive and intimate personal data are also not sufficiently delineated. The possibility of coupling with unspecified data,

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from a non-exhaustive list of "data sources, data sharing platforms, and external hubs" (concepts that are not further explained or defined in the Vitalink decree) suggests that the already vast Vitalink database could be expanded in a non-transparent manner. The Knowledge Center concludes by emphasizing the importance of prior (additional) consultation when a data protection impact assessment indicates that the processing would pose a high risk if the data controller does not take measures to mitigate the risk. The impact of these legislations, examined by the Knowledge Center in draft form, must be evaluated in light of their interaction with the evolving European regulatory landscape, particularly aimed at encouraging the reuse of health data and their consolidation into European databases.

For more details: see the proposals for European Regulations regarding "European Data Spaces" or regarding data "Data Act" commented on by the European Data Protection Committee – EDPB-EDPS Joint Opinion 03/2022 on the Proposal for a Regulation on the European Health Data Space of July 12, 2022, and EDPB Statement on the Digital Services Package and Data Strategy, November 18, 2021.

In its opinions, the Knowledge Center strives to include as many concrete recommendations for initiatives directed at the legislator as possible, including technical recommendations alongside the evaluation of the submitted provisions. The most important general legislative initiative recommendations are summarized on the "Legislative Recommendations" page of the APD website.

■ Opinion No. 18/2023 of January 20, 2023, regarding a bill amending the new municipal law to facilitate the establishment of a national ban on access to recreational areas

Can a temporary ban on a recreational area imposed by a mayor automatically lead to similar bans in all recreational areas of the country, and, if applicable, on what basis can such decisions be made regarding data processing?

For more details: These temporary bans on locations constitute administrative police measures that can be imposed by a mayor "in case of public order disturbances caused by individual or collective behaviors [...] or on the occasion of similar events, involving a disturbance of public order or incivility." The proposed law provided for the creation of a centralized database of such decisions as well as a "central file of photographs of individuals subject to a location ban" and the communication of this data to operators of recreational areas and zones, in order to enable them to decide to deny access to individuals who have been subject to a temporary ban imposed by a mayor.

The Knowledge Center has advocated for other control methods while ensuring the anonymity and security of the data of the many visitors to recreational areas who are not guilty of public order disturbances.

Examples of control techniques considered: In this regard, the Authority has identified two control models: the establishment of "watchlists"

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(repeating the name and photo of individuals subject to the prohibition of recreational areas) allowing operators to only control those individuals who are actually subject to such a prohibition or a systematic control comparing, in an automated manner, the information on the identity card with a list of hashes of RN numbers, identity card numbers, and names of individuals subject to a prohibition of recreational areas. The Knowledge Center has highlighted the advantages and disadvantages of these two models, both in terms of their effectiveness and the fundamental rights of the individuals concerned, including their right to data protection. The Knowledge Center has made concrete

proposals to the legislator to enable them to complete the proposed law and specifically to define (i) the concept of "recreational area" (open or closed with or without entry control), (ii) the degree of severity of "incivilities" that may lead to such a prohibition, and (iii) the mandatory nature of compliance with such criteria by the concerned operators, if applicable, modeled after football stadium bans. This opinion illustrates the importance of a combined legal and technical approach, in order to lay the groundwork for solutions for the legislator, within the currently allotted time for opinions. The Knowledge Center wishes to be able to continue to formulate such constructive proposals under the future LCA, notwithstanding the shortened opinion deadlines and the removal of externally attached experts structurally linked to the Knowledge Center. The Internal Rules of Procedure will ensure the occasional engagement of external experts, in support of internal technical expertise.

Initiative Recommendations

On the occasion of the legislative opinion request 160/2023 dated December 11, 2023, the Knowledge Center has proactively specified its general recommendations to the legislator and the data processing managers of electoral lists for electoral publicity purposes, in anticipation of the 2024 elections. This recommendation, initially partially integrated into a separate chapter following the legislative opinion, and subsequently published in a separate form and updated in 2024, specifies the recommendations of the APD regarding:

- the communication of copies of the voter registers to political parties and candidates, for the purpose of conducting electoral propaganda actions by mail;
- the implementation of sufficient technical and organizational measures to secure the exchange of data from electoral lists, notably user management and access to the digital space using a strong authentication method;
- the establishment of safeguards when issuing voter registers to political groups and candidates: right to oppose and to be informed;
- the deletion of certain data in the absence of duly justified justification in the applicable legislation, if necessary (date of birth, gender) and the limitation of the processing of certain data for electoral publicity purposes (nationality, name).

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The Knowledge Center reminds that in the absence of specific provisions in the legislation organizing the communication of electoral lists for the purposes of targeted electoral propaganda by mail, it is the responsibility of the data processing managers of these lists to ensure that appropriate safeguards are implemented (for example, regarding the right to object). They will be required to demonstrate their best efforts in this regard.

This recommendation is therefore addressed to both the legislator and the data processing managers, and will form the basis of a summary of the rules and best practices regarding electoral publicity by the Frontline Service at the beginning of 2024.

Management of Priorities – Standard Opinions

The priority task of the Knowledge Center consists of issuing prior and mandatory opinions regarding all legislative or regulatory texts of general scope that create, adapt, or implement personal data processing.

The Knowledge Center sorts submissions based on the level of interference of the opinion projects submitted, as well as, where applicable, when relevant, by the cross-cutting priorities of the Data Protection Authority (DPA).

The assessment of the level of interference is carried out using the information provided by the applicant in the opinion request form and a 'quick screening' of the draft legislation where applicable. The Knowledge Center has two options: a substantive opinion on all elements of the draft or a "standard opinion."

The Knowledge Center generally issues a "standard opinion" summarizing the general principles of personal data protection to be considered when drafting legislation, when the applicant does not indicate in their opinion request form that the submitted project could pose high risks to the rights and

freedoms of the individuals concerned, and when the information provided by the applicant in the form does not allow for the conclusion that such risks would exist.

On the other hand, to the extent of its human resources, the Knowledge Center attempts to provide substantive opinions when legislative projects indicating a significant level of interference are submitted to it and/or when it corresponds to one of the cross-cutting priorities defined by the DPA for 2023 (see introduction to the DPA's budget requests for 2022). Thus, in 2023, the Knowledge Center prioritized opinions on bills related to the implementation of "smart city" projects, such as smart meters. In addition to the effort expended for sorting the submitted documents after a *prima facie* legal review, the provision of standard opinions also involves substantial administrative work as the related documents must be submitted for approval by the Knowledge Center as a collegial body concerned with validating the sorting carried out. This standard opinion practice has been in place since May 2022.

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Notice Periods

The law obliges the Knowledge Center to adhere to deadlines for the issuance and publication of these notices. In 2023, compliance with these deadlines remains a challenge for the Knowledge Center due to various factors such as:

- The number of concurrent notices to be issued;
- The number of requests for opinions has significantly increased over the years, rising from 168 in 2018 to 611 in 2023. This uninterrupted increase since 2020 is primarily explained by the legal obligation enshrined in Article 36, 4, of the GDPR. Additionally, this growth in requests also follows the gradual implementation of the competencies of the federated entities resulting from the 6th State Reform (Constitutional Court ruling No. 26/2023 reminding the Flemish Authority that the opinion of the Data Protection Authority must always be sought regarding their standard-setting projects involving the processing of personal data, which was not the case previously). Since then, the Knowledge Center has clarified that an opinion provided by the VTC cannot be considered as a consultation within the meaning of Article 36.4 of the GDPR (see, for example, opinion No. 165/2023 of December 18, 2023, regarding a draft decree of May 18, 2018, concerning Flemish social protection, § 55).
- The increasing number of urgent opinion requests since the announcement of a future reduction in notice periods in an upcoming organic law;
- The announcement of the future organic law, voted on December 25, 2023, which entails a considerable reduction in the deadlines within which the Knowledge Center is authorized to express its opinion (from 60 to 30 days, by default, and from 15 to 5 days in case of urgency), has resulted in a multiplication of urgent opinion requests during the year 2023. The Knowledge Center has attempted to respond to requests by assigning files to agents more quickly and by categorizing *prima facie* less impactful opinions as standard opinions more rapidly. This *de facto* reduction of deadlines has often necessitated the quicker assignment of files without having a critical mass of opinions and without being able to prioritize the opinions received within 60 days. Some priority opinions have led to the abandonment of other less priority files that were assigned previously on short notice. In this context, the reduction of deadlines has sometimes resulted in a decrease in the number of files processed by each agent.
- The necessary preparation of most opinion requests (exchange of questions and answers with the authors of the text);
- The complexity and variety of the issues at stake in addition to data protection and the necessity to examine not only the draft texts or articles submitted for opinion but also the related legislations and parliamentary documents;
- The time and organizational constraints encountered during the internal adoption of opinions in the context of the collegial nature of the Knowledge Center (setting fixed deadlines for holding discussions prepared by written exchanges, involvement of "external" members, anticipation of said meetings by sending drafts);
- The FTE/opinion request ratio.

While the number of requests for opinions more than doubled between 2020 and 2022, the number of legal experts only increased from 6 to 8.8. The working conditions and the high demand for profiles employed at the APD in the job market led the Knowledge Center to lose 2 FTEs in 2023. The remaining 7 legal experts had to face the nearly doubling of requests for opinions between 2022 (323 requests) and 2023 (611 requests received). This explains the significant number of standard opinions published in 2023 (415). Among the 546 opinions published in 2023, indeed, 131 are substantive opinions and 415 are standard opinions. The APD further specifies that due to the influx of requests, the mode of publication of standard opinions and the numbering of opinions was modified during the year, which introduces a margin of error in some files due to the manual counting of standard opinions rendered in 2023.

At the end of 2023: the APD was able to hire 3 new legal experts at the end of 2023 and to replace the 2 resigning legal experts. This increase in resources (3 legal experts), while substantial, is welcome but not proportional to the number of opinions received in 2023.

Framework Extension 2023 and Perspectives 2024

In its 2022 annual report, the Knowledge Center was pleased that the framework extension granted to the entire APD in 2023 would partly benefit its legislative opinion activities in 2023. This was without accounting for the doubling of the number of legislative opinion requests received during that year. Again, the Knowledge Center hopes that the framework extension of 2 legal experts and 1 ICT obtained at the end of 2023 will benefit its legislative opinion activities in 2024. Additional support is also requested to manage the reduction of opinion deadlines following the vote on December 25, 2023, of a new organic law reducing the opinion deadlines for this service by half.

If granted, this support should contribute to the Knowledge Center being able to fulfill its legislative opinion task in the majority of cases where a substantive opinion is required. The Knowledge Center also wishes to provide more initiative recommendations based on needs.

Participation in the EDPB's Work – Guidelines on "Anonymization" and "Pseudonymization"

In 2023, the Knowledge Center continued to participate in the drafting of guidelines, contributing to the work of the EDPB (European Data Protection Board). The Knowledge Center notably continued its role as lead rapporteur in the development of EDPB guidelines regarding the revision and update of recommendations and best practices concerning techniques for anonymizing personal data. The Knowledge Center also participated in the work related to guidelines on pseudonymization. In the context where the GDPR rules impose substantial limits on any project involving the processing of personal data (e.g., requirement for minimization or proportionality of processed data), the Knowledge Center thus intends to contribute to the search for solutions through reflection on techniques that facilitate the implementation of projects involving the processing of anonymized or pseudonymized data.

These inquiries will also be key in the Knowledge Center's contribution to the cross-cutting priority "smart city," defined by the APD in its 2022 budget introduction, and that new resources will allow to be implemented in early 2024.

Achievements in Numbers

In 2023, published 546 opinions (including 131 substantive opinions and 415 standard opinions) on draft normative and regulatory texts. The number of legislative opinions processed and published has thus further increased compared to the number of opinions published in 2022 (278). The Knowledge Center received 611 requests for opinions on draft legislative or regulatory standards, double the requests received in 2022 and 2021 (approximately 300 and 250, respectively).

In 2023, the Knowledge Center published a general initiative recommendation, aimed not only at the legislator but also at data processing managers, regarding the processing of electoral lists for electoral

advertising purposes. This recommendation formed the basis for a broader clarification and awareness-raising action by the APD in 2024, aimed at reminding the rules regarding electoral marketing.

Type of File

Result

Number

Opinions

Status: published

546

Recommendation

Status: published

1

Total

547

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Inspection Service

The law of December 3, 2017 establishing the Data Protection Authority (hereinafter the "LCA")¹ describes the Inspection Service rather succinctly as "the investigative body of the Data Protection Authority." In practical terms, this means that the Inspection Service is responsible for examining complaints concerning violations of European and Belgian data protection legislation, including the General Data Protection Regulation (hereinafter the "GDPR"), as well as serious indications of such violations.²

The Inspection Service is headed by the Chief Inspector, Peter Van den Eynde, and consists of inspectors. The inspectors have various profiles (auditors, information security experts, and legal professionals) to ensure a multidisciplinary approach. This allows for the analysis of technical, organizational, and legal aspects.

The Inspection Service carries out its monitoring activities independently, in a planned, professional, efficient, and discreet manner. To this end, it conducts (non) periodic monitoring as well as inspection missions regarding (inter)national processing in the public and private sectors, based on relevant risks, under the GDPR and related data protection legislation and regulations (for example, legislation concerning cameras).

The Inspection Service has an extensive arsenal of investigative options. To analyze a case, the Chief Inspector and the inspectors may, if deemed necessary and in accordance with the LCA:

- identify individuals;
- interview individuals;
- conduct a written inquiry;
- carry out on-site examinations;
- consult computer systems and copy the data they contain;
- access information electronically;
- seize or seal property or computer systems;
- require the identification of the subscriber or usual user of an electronic communication service or the electronic communication means used.

The LCA provides various ways for the Inspection Service to open a case. A case may primarily be opened:

- at the initiative of the Management Committee when there are serious indications of an infringement, if it is necessary to cooperate with a foreign data protection authority, or at the request of a judicial authority or an administrative control body;
- at the initiative of the Litigation Chamber if a complaint requires an investigation or if a supplementary investigation is necessary;

¹ Law of December 3, 2017 establishing the Data Protection Authority. You can consult this text via the

following link:

<http://www.ejustice.just.fgov.be/eli/LOI/2017/12/03/2017031916/justel>.

2 Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC. You can consult this text via the following link: <https://eur-lex.europa.eu/legal-content/FR/TXT/PDF/?uri=CELEX:32016R0679&from;=FR>.

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at the initiative of the Inspection Service itself if there are serious indications of an offense.

The whistleblower law³ provides an addition to the investigative competence of the LCA. External notifications that fall under the whistleblower regulations may be subject to an investigation by the Inspection Service, whether they are submitted directly to the Inspection Service or via a transfer to the Inspection Service of the notification initially made to the Federal Ombudsman⁴, within the framework of a cooperation protocol⁵ established between the Federal Ombudsman and the APD.

A Charter of the Inspection Service has also been developed in the past, which is subject to periodic updates based on new practices and knowledge. This charter aims to inform the general public as well as anyone dealing with the Inspection Service about the concrete process of an inspection, the various possible investigative acts of the Inspection Service, and their subsequent consequences.

In general, the Inspection Service notes (see also the figures further on) that cases are becoming more complex, not only in substance but also procedurally. After a few years of practice, the Inspection Service occasionally receives remarks that the number of questions asked does not always seem proportionate to the case or that the questions are very general.

Regardless of the general investigative technique that begins with a request for access to documents that are supposed to be present within the framework of ordinary "data protection management" in light of the principle of accountability (e.g., the processing register, the incident register, ...), other questions are rather general or professional in nature.

Some general questions primarily aim to understand the context of the processing and to know the means available to a data controller (for example, questions about turnover, the annual report, ...).

Each case is different and therefore requires a unique assessment and estimation based on the risks related to the nature and scope of the processing, the "main" activities of a data controller, and the legal or ethical rules to which they are or are not subject (for example, a local or regional authority, a medical practice or a hospital, a "data broker," a telecom operator, ...).

The content of the questions can also be viewed from a more positive angle. Often, the underlying reason for certain questions is educational in nature (for example, questions about the meaning of certain words in a privacy statement or about the technical installation of cookies or tracking on a website, ...). These questions thus facilitate awareness of certain issues and allow the person being questioned to already make adjustments.

3 Law of November 28, 2022, on the protection of persons reporting violations of Union law or national law observed within a legal entity in the private sector. You can consult this text via the following link:

<http://www.ejustice.just.fgov.be/eli/loi/2022/11/28/2022042980/justel>

4 The Federal Ombudsman - Integrity Center, Rue de Louvain 48 bte 6, 1000 Brussels, integrite@mediateurfederal.be, <https://www.mEDIATEURFEDERAL.BE/fr>.

5 Published at the following address: <https://www.autoriteprotectiondonnees.be/publications/protocole-d-accord-concernant-le-traitement-des-signalements-externes-de-violations.pdf>.

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of processing during the investigation period. Accountability, one of the key elements of the GDPR, also requires the data controller to reflect in detail on each specific processing activity, to document this process internally, and to verify whether it is indeed compliant with the GDPR.

In other words, the questions serve not only to examine a case "against" but can also raise awareness for the data controller, allowing them to make some adjustments during the investigation. The data

controller is thus invited to think deeply about all kinds of aspects of their processing activities and can more accurately assess whether their processing activities are compliant with the GDPR and adapt them accordingly, if necessary.

Furthermore, the proportionality or otherwise of the number of questions cannot always be determined at the outset of a case. The Inspection Service therefore does not operate with a "fixed" approach of the same questions for all cases. As mentioned earlier, it sometimes first needs to grasp the general issue (e.g., if the DPA has not published recent guidelines on a certain type of technique or processing) before it can conduct a balanced analysis of a specific point or problem. Data controllers who demonstrate greater transparency through the means provided by the GDPR (such as the privacy statement for citizens or the register of processing activities) generally have to answer fewer questions from the Inspection Service, making the investigation phase less laborious. As indicated, the number of questions may also prompt the questioned data controller to consider the assessment of certain risks that had not been previously taken into account.

What have the "Schengen audits" taught us so far?

As part of the evaluation and monitoring mechanism for the enforcement of the Schengen acquis, the DPA, and in particular the Inspection Service, conducts "audits."

These audits consist of a national component and a European component. The national component focuses on auditing a number of actors at the data protection level. Thus, the Inspection Service is currently auditing the Federal Public Service Foreign Affairs and the Office of Foreigners. This is primarily done through an audit program. In this context, it conducts audits on Belgian territory, as well as in Belgian embassies and consulates abroad.

The Inspection Service has meanwhile completed a first four-year audit cycle. In this way, the DPA can fulfill its audit obligation imposed every four years. The VISA processing activities of the embassies in Dublin, Paris, The Hague, London, the Consulate General in Istanbul, and the ICT service of the Federal Public Service Foreign Affairs in Brussels have been audited, as well as the specific subcontractor – referred to as ESP ("external service provider") – that was involved in Istanbul and London in the VISA processing.

6 We refer here to the VIS Regulation (see Article 41 of this Regulation) where the DPA acts as the national supervisory authority.

7 The system facilitates the application procedure for obtaining a visa and proactively checks for visa shopping/fraud and supports controls at the external borders of the Member States and internal (national) security.

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For each on-site visit, an audit process was followed (including pre-sent questionnaires to be completed, an on-site visit, and information and documentation to be provided afterwards) and an audit report was submitted with recommendations for both the Federal Public Service (FPS) Foreign Affairs and the Public Service Entities (PSEs) with which the Inspection Service cooperated. Through these recommendations, the Inspection Service aims to raise awareness within the FPS Foreign Affairs regarding the points of attention arising from Regulation No. 767/2008 concerning the Visa Information System (hereinafter referred to as the VIS Regulation) and Regulation No. 810/2009 Visa Code on the one hand, and the GDPR on the other hand.

The Inspection Service notes that the collaboration with the various actors within the FPS Foreign Affairs is described as very constructive, with a trend that is evolving positively. Nevertheless, the audit mission is inherently complex: an expert must master both the GDPR, the European SIS II, and the VIS Regulation No. 767/2008 or the Visa Code Regulation 810/2009. They must have a sufficient command of English and possess legal and technical knowledge, as well as auditing skills to successfully conduct the on-site evaluation while adhering to a strictly defined methodology and timeline.

Previous annual reports have regularly reported, in general terms, what audits entail as such.

However, the Inspection Service wishes to communicate in this annual report some results to better

illustrate and concretize its audit mission. To date, voluntary cooperation with the audited entities is remarkable, as well as the fact that audits indeed yield results, not only during the audit itself but also subsequently throughout the audit process.

These results are situated at three main levels.

Firstly, at the level of the "central services." The Inspection Service has determined that: the FPS Foreign Affairs and the Office of Foreigners acted as joint controllers for the processing of VISAs and were required to fulfill the information obligation, which was done through the signing of a protocol.

8 Regulation (EC) No. 767/2008 of July 9, 2008, concerning the Visa Information System (VIS) and the exchange of data between Member States on short-stay visas (VIS Regulation). Hereinafter referred to as the "VIS Regulation."

9 Regulation (EC) No. 810/2009 of July 13, 2009, establishing a Community Code on Visas (Visa Code). Hereinafter referred to as the Visa Code Regulation.

10 Schengen Information System

11 Regulation (EU) 2018/1861 of the European Parliament and of the Council of November 28, 2018, on the establishment, functioning, and use of the Schengen Information System (SIS) in the field of border checks, amending the Convention implementing the Schengen Agreement and amending and repealing Regulation (EC) No. 1987/2006

<https://eur-lex.europa.eu/legal-content/FR/TXT/PDF/?uri=CELEX:32018R1861&from;=ET>

12 Regulation (EC) No. 767/2008 of July 9, 2008, concerning the Visa Information System (VIS) and the exchange of data between Member States on short-stay visas (VIS Regulation). Hereinafter referred to as the "VIS Regulation."

13 Regulation (EC) No. 810/2009 of July 13, 2009, establishing a Community Code on Visas (Visa Code). Hereinafter referred to as the Visa Code Regulation.

14 See Article 26 of the GDPR.

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of cooperation, followed by a communication on this subject on their respective websites; cooperation protocols between the SPF Foreign Affairs and external public services¹⁵ (exclusions Office of Foreigners – see previous point) must be provided or adapted when personal data is transmitted or access is granted to the physical environment of embassies and consulates and/or technical security agreements for the system when external public services are hosted in the same building and use the same technical devices (hardware and/or software) and have access to the physical premises;

a strengthening of the data protection officer of the SPF Foreign Affairs, by providing more material and human support, and ensuring, in addition to awareness and training, that the data protection officer is more involved internally in the event of new processing activities or modifications thereof. The Inspection Service also notes the good constructive cooperation with the data protection officer; instructions have been brought into compliance with Regulation Visa Code 810/2009¹⁶ regarding the retention period of archives of 2 years under Article 37, 3 of the Visa Code, with individual application files being kept for a period of at least 2 years from the date of the decision regarding the application, and training for subcontractor staff has been provided; The Inspection Service also notes that the Visa Directorate has taken appropriate measures quickly;

transparency regarding VISA processing and the rights and freedoms of visa applicants, via forms and privacy statements, has been updated;

central contracts with subcontractors (ESP or "external service providers") via tender files must more formally take into account the various obligations of the GDPR and Regulation VIS No. 767/2008¹⁷ / Regulation No. 810/2009 Visa Code¹⁸, but compliance with the agreements established with the ESP must also be verified and documented periodically;

the Inspection Service indicated that it intends to further formalize business continuity plans (BCP) and "Disaster Recovery" (DR) plans and to make "high-availability" (HA) more measurable. Furthermore, the importance of finalizing the formalized security policy was also emphasized to ensure the integrity

and confidentiality of data. Attention was also drawn to potential areas for improvement in current technical security practices, with the aim of strengthening our overall security status and better managing risks.

15 For example, representatives from the Ministry of Defense or liaison officers from the federal police.

16 Regulation (EC) No. 810/2009 of July 13, 2009 establishing a Community Code on Visas (Visa Code) (""). Hereinafter referred to as the Visa Code Regulation.

17 Regulation (EC) No. 767/2008 of July 9, 2008 concerning the Visa Information System (VIS) and the exchange of data between Member States on short-stay visas (VIS Regulation). Hereinafter referred to as the "VIS Regulation".

18 Regulation (EC) No. 810/2009 of July 13, 2009 establishing a Community Code on Visas (Visa Code) (""). Hereinafter referred to as the Visa Code Regulation.

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Secondly, at the level (of the functioning) of the (Belgian) embassies and consulates, a review of the procedural, physical, and technical handling of visa applications in the relevant locations was conducted through a consultation of the specific visa application files. The control of the flow of information between the various external partners involved in this processing activity, as well as the use of the appropriate central forms and the transparency expected towards the visa applicant, were also on the agenda. For each site, recommendations were made to further optimize the processing activity. Since Belgian embassies and consulates are often housed in rather historic buildings, possible solutions were considered in a pragmatic manner. Goodwill has always been high, and the information provided was of high quality. The points of attention for the embassies and consulates remain the physical and technical interactions with external public services within their organization, the monitoring of the contractual agreement (in accordance with the obligations arising from the GDPR) when collaborating with local subcontractors (for example, for the destruction of documents at the end of the retention period and surveillance contracts), and the provision and monitoring of the level of knowledge of the employees of external subcontractors (ESP), as prescribed by the Visa Code, as well as the documentation of these actions.

Thirdly, regarding the functioning of what are called ESPs (external service providers) who often act as concrete subcontractors in the premises of the embassies and consulates. The Inspection Service visited the local section of these ESPs on-site and questioned them using basic questionnaires. Additional attention was given to the positioning of this local section within the overall structure of these international organizations, focusing on accessibility and the position of the data protection officer. In addition to the physical on-site visit, the information channels for visa applicants, the procedures, and the technical systems for processing the personal data of visa applicants were also examined. The Inspection Service thus formulated various recommendations regarding the technical access provided to the personal data of visa applicants, the transparency towards visa applicants regarding VISA processing, the correct indication of rights and freedoms, and, where applicable, the use of updated forms. The Inspection Service also recommended that the Federal Public Service (FPS) Foreign Affairs supervise and provide quality training to the subcontractor's staff, as its external personnel must have sufficient knowledge to provide quality service and give adequate information to applicants. The contractual agreements, when these ESPs worked with subcontractors, and the manner in which information about the (new) subcontractors was communicated to the FPS Foreign Affairs, as well as the possibility of approval from the FPS Foreign Affairs, were also subject to audit recommendations from the Inspection Service.

As part of this Schengen acquis and participation in European working groups more focused on policy in this area, the Inspection Service has already been able to make its necessary/useful contribution.

A new competence following the whistleblower legislation

Since around mid-2023, the Data Protection Authority (DPA), and more specifically the Inspection Service, has acquired a new competence regarding whistleblower legislation.

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of whistleblowers¹⁹. This competence applies to the regulation that the DPA supervises in accordance with its organic law (see specifically Article 4 of the LCA: "The Data Protection Authority is responsible for monitoring compliance with the fundamental principles of personal data protection, within the framework of this law and laws containing provisions related to the protection of personal data processing"). A memorandum of understanding has also been concluded for this purpose with the Federal Ombudsman²⁰.

The whistleblower law²¹ implies that individuals who are faced with a violation of data protection regulations in a labor law context in the private sector can report these violations directly or indirectly to the DPA. However, for violations identified by an employee in the context of labor law in the public sector, the Federal Ombudsman remains competent.

The DPA has therefore taken additional measures, and a memorandum of understanding between the Federal Ombudsman and the DPA was signed by both parties at the end of June 2023, on one hand, and the DPA's website has been adapted with additional information for "whistleblowers," on the other hand²².

Given that the Inspection Service is the investigative body of the DPA, it is competent to follow up on cases concerning whistleblowers, and since June 2023, it has already been able to gain experience with this new influx of reports. Reports that fall under the whistleblower regulations can be examined by the Inspection Service if they are either submitted directly to the Inspection Service preferably via the email address inspection@apd-gba.be, or indirectly via a transfer from the Federal Ombudsman²³ to the Inspection Service.

During the second half of 2023 (which corresponds to the time when explicit information was included on this subject on the website²⁴), the Inspection Service received about thirty reports.

However, it is first noted that this mainly concerns erroneous reports. These are rather "general" reports regarding privacy-related aspects without any professional relationship between the reporting individual and the whistleblower report.

19 Law of November 28, 2022, on the protection of persons reporting violations of Union law or national law observed within a legal entity in the private sector. You can consult this text via the following link: <http://www.ejustice.just.fgov.be/eli/loi/2022/11/28/2022042980/justel>

20 <https://www.autoriteprotectiondonnees.be/publications/protocole-d-accord-concernant-le-traitement-des-signalements-externes-de-violations.pdf>.

21 Law of November 28, 2022, on the protection of persons reporting violations of Union law or national law observed within a legal entity in the private sector. You can consult this text via the following link: <http://www.ejustice.just.fgov.be/eli/loi/2022/11/28/2022042980/justel>

22 <https://www.autoriteprotectiondonnees.be/lanceurs-d-alerte>

23 The Federal Ombudsman - Integrity Center, Rue de Louvain 48 bte 6, 1000 Brussels, integrite@mediateurfederal.be, <https://www.mEDIATEURFEDERAL.BE/fr>.

24 <https://www.autoriteprotectiondonnees.be/lanceurs-d-alerte>
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For example, one might mention a person who has seen surveillance cameras in their neighborhood, the issue of the deposit/payment system for cups at the Ghent festivities, the placement of cookies on a website... The absence of a labor law context and employment in the private sector has meant that several whistleblowers could not resort to this regulation on whistleblowers. However, the Inspection Service emphasizes that this information is retained and can serve as a signal regarding certain processing or (a practice of a) data controller. A general response is often sent, indicating the various possibilities for action with the APD (such as the possibility of asking a question or submitting a request for mediation or a complaint).

The second observation is that regarding the "real" reports (limited so far) that must indeed be analyzed in depth, there is a significant issue of very insufficient concrete support for the report to

justify further substantive processing (too vague a description, more like "rumors," absence of documents supporting the report, etc.). This observation applies even if the Inspection Service explicitly requests additional elements from a whistleblower (a request that is not always followed by a response).

Pursuant to, among other things, the GDPR and the LCA, the Inspection Service must indeed respect the proportionality of the investigation. As the APD Knowledge Center stated in its opinion No. 69/2022 of April 22, 2022, regarding the draft law on the protection of persons who report violations of Union law or national law observed within a legal entity in the private sector, a report within the meaning of the whistleblower law can indeed "have significant consequences for the persons concerned." In these cases, the Inspection Service contacted the whistleblower, but the latter could not provide evidence supporting their claims. For the Inspection Service, the element of proof remains essential, and investigations cannot be initiated based on mere assumptions or narratives. The Charter of the Inspection Service²⁵ specifies: "The Inspector General and the inspectors must respect the principles of proportionality and necessity. Specifically, investigations cannot go beyond what is necessary given the file."

Finally, the Inspection Service notes that the anonymity (desired) of the whistleblower can also constitute an obstacle for the continuation of processing. One can again refer to the aforementioned opinion No. 69/2022 of the Knowledge Center: "Nevertheless, the Authority believes that an anonymous report should remain optional and exceptional. Such a method complicates not only communication between the whistleblower and the recipient of the report (which is necessary for adequate follow-up), but it can also lead to abuses by whistleblowers and the unlawful processing of related personal data. Although the final responsibility for the processing of personal data always rests with the respective data controllers (the company in the case of an internal report / the competent authorities or the federal coordinator for external reports), the whistleblower must also demonstrate the sense of responsibility that is required; a report can indeed have

²⁵ See page 21 of the charter published at <https://www.autoriteprotectiondonnees.be/publications/charte-du-service-d-inspection.pdf>.
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of significant consequences for the individuals concerned. The reporting party cannot feel discouraged from making a report, but if anonymous reporting becomes the norm, we slide into a culture of denunciation, with the excesses that ensue. It is therefore regrettable (such an obligation does not indeed stem from the directive) that the applicant [i.e., the author of the draft standard] has chosen to provide for a generalized right to make an anonymous report. In light of the principle of proportionality, it seems advisable, without prejudice to existing obligations to provide for anonymous reporting based on Union law, to limit the right to make an anonymous report to cases where the risks for the reporting party clearly outweigh the potentially negative consequences for the individuals targeted by the report. The legislator has taken this into account (but only in a limited manner) – parliamentary work indeed asserts that anonymity must remain "exceptional": "In any case, anonymity must, however, remain optional and exceptional as it can, in particular, make communication between the reporting party and the recipient of the report difficult, whereas such communication may be necessary to carry out diligent follow-up (in particular, to assess the accuracy of the allegations and remedy the reported violation)." In principle, under privacy legislation and its application by the DPA, a complaint/report can indeed be processed anonymously, but this generally complicates matters significantly on the merits and at the procedural level. Another issue regularly arises: even if the name of the reporting party is not mentioned, it is possible that the targeted entity may indirectly deduce their identity from the context of the specific case. It is not clearly known whether reporting parties are actually aware of this nor what the possible consequences are, for example, for the competent authority that would have nonetheless examined the case further.

The anonymity requested under the whistleblower regulation constitutes a point of attention for the Inspection Service and is respected during the investigation phase in accordance with the

confidentiality obligation of Article 20, § 1 of the Whistleblower Act. The WBA also provides for an explicit confidentiality obligation (certainly regarding the inspection phase), with Article 64 stating the following: "§ 3. The investigation is confidential except for legal exceptions, until the moment the report of the inspector general is submitted to the contentious chamber."

However, the Inspection Service emphasizes that the Whistleblower Act provides for a possible exception to this confidentiality obligation if the direct or indirect disclosure of the identity at the end of the investigation (by the Contentious Chamber of the DPA) is considered a necessary and proportionate obligation in order to safeguard the defense rights of the concerned data controller, see Article 20, § 2 of the Whistleblower Act. In certain cases, disclosure (without mentioning the identity) can also be indirectly deduced from the context, by

26 Law of November 28, 2022, on the protection of persons reporting violations of Union law or national law identified within a legal entity in the private sector. You can consult this text via the following link: <http://www.ejustice.just.fgov.be/eli/loi/2022/11/28/2022042980/justel>.

27 Law of November 28, 2022, on the protection of persons reporting violations of Union law or national law identified within a legal entity in the private sector. You can consult this text via the following link: <http://www.ejustice.just.fgov.be/eli/loi/2022/11/28/2022042980/justel>.

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example following the communication of documents and the consultation of the file. It results that a whistleblower must be aware of this situation involving that an investigation may be interrupted at the request of the complainant. The handling of a report under the whistleblower regulations is therefore not always straightforward to implement even if anonymity is guaranteed.

(Initial) experiences following an increased use of dismissals without further action

In previous annual reports, the significant workload within the APD and the Inspection Service has already been highlighted. Although the GDPR aims for more accessible processing of files related to data protection and the APD is not opposed to this idea, it is nonetheless necessary to find mechanisms to keep the workload under control and not leave files pending for too long. This applies not only to the individuals concerned but also to the APD in general and to the Inspection Service in particular.

One of the (legal) options available to the Inspection Service is indeed to dismiss a file without further action, as provided for in the LCA. The Inspection Service has already resorted to this option in the past, for example, if it did not obtain additional detailed information from the complainant to properly process the file, if the complainant themselves stated during the investigation that the complaint could be closed (if, for example, the complainant had already obtained a satisfactory solution from the opposing party), or if it turned out (after further investigation or not) that the APD was not competent. In the meantime, this tool has also been implemented as a sort of strategic tool.

The purpose of such an intervention is indeed primarily to ensure the application of the GDPR, without the fine or any other sanction necessarily being an end in itself. The APD still aims to "be a guide to a digital world where privacy is a reality for everyone."

The Inspection Service indeed examines various elements related to privacy "within the framework" of the file but, where appropriate, also "outside of its framework." In many of these cases, it specifically concerns means employed by the data controller aimed at increasing transparency towards citizens in general and the individual concerned in particular.

Examples include the publication of a clear, comprehensive, and GDPR-compliant privacy and cookie policy, the internal maintenance of a register of processing activities, and enabling the proper exercise of the rights of the individuals concerned (for example, the right of access or objection).

However, the Inspection Service notes that, in practice, these means often still leave much to be desired, even though the GDPR has been applicable since May 25, 2018 (and even in force since 2016). A data controller can no longer ignore them.

In its investigations, the Inspection Service regularly draws attention to these transparency-promoting instruments, given that they are beneficial for all citizens.

The data controllers that have come under scrutiny are very diverse: for example, a festival organizer, a temporary employment agency, online gambling, municipalities, banks, etc.

If the Inspection Service notices that the data controller is immediately cooperative and constructive in seeking solutions and taking into account the remarks of the Inspection Service, the latter regularly closes concrete cases at its level.

The concrete results obtained after the intervention of the Inspection Service indeed lead to greater compliance with the GDPR. A quicker processing of these cases is also observed within the DPA, which is positive not only for the DPA itself (in terms of workload, for example) but also for the parties involved (for the data controller, certainties regarding the processing of their case and its consequences are obtained more quickly, and for the citizen, there is also greater compliance with the GDPR on the part of the entities that handle personal data).

This approach thus effectively generates added value from a practical standpoint. In some cases, the term "no further action" may sometimes have a negative connotation, but in many cases, it means that an investigation has led to the desired results and results in better compliance with the GDPR.

Therefore, a no further action classification does not automatically mean that a case is subject to a "vertical classification."

Consequently, the Inspection Service will further examine whether such no further action classifications can be extended to other areas of the GDPR, without necessarily limiting itself to tools that promote transparency.

Achievements in Numbers

70 new cases have been submitted to the Inspection Service by the Litigation Chamber. These cases arise from incoming complaints. Among these complaints, several recurring inspection theme groups are noted:

- Several cases deal with surveillance cameras and the legislation regarding cameras in Belgium. We observe that individuals and companies installing surveillance cameras are still not aware of the impact on the privacy of the individuals targeted by these surveillance cameras. Residents of apartment buildings and student housing, for example, were affected in 2023. A few young people and some older individuals had the courage to speak out on these issues.

In order to limit the workload and allow for a more efficient investigation process, local police services have systematically been called upon in the same manner to carry out the observations. This allows for a distribution of the workload and is also explained by the fact that local police services are better informed about the specific local situation. The Inspection Service also notes that the findings of the local police on the ground have a clear impact and allow for more effective protection than when the situation is approached "from a distance." Although the cases often concerned other police areas (local), cooperation with the local police in the camera cases has always proceeded perfectly.

Training was also provided this year to the local police as part of the "Neighborhood Officer Day." The Inspection Service is also attempting to support police services and has begun developing additional documentation that will explain the cases in which an investigation related to surveillance cameras will be conducted;

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Given that a website often serves as a business card for the data controller and constitutes a first point of access to that same data controller, the Inspection Service continues to pay attention to a sufficiently qualitative privacy statement as well as the resulting data protection policy. At the same time, it remains a priority to verify the management of cookies and tracking. The Inspection Service observes in this regard that data controllers still need to make regular adjustments and that the placement of these cookies is not always done in a manner that respects privacy. In this context, particular attention was also paid in 2023 to the handling of complaints initiated by foreign interest

groups representing data subjects. The Inspection Service notes that when the representation of a data subject is ensured by an interest group, certain particularities are highlighted. Since the Inspection Service examines complaints both for and against, it notes among other things that mandates are not always drafted with sufficient specificity, that the interest of the data subjects could be questioned, or that there was a potential conflict of interest between the data subject and the representative. The Inspection Service has made various findings in this context in individual investigation files, which were then processed by the Litigation Chamber, and elsewhere, the Inspection Service also classified some of these files without further action because either the subject of the complaint had disappeared due to various actions of the data controller, or because the representative of the data subject had filed a general complaint against the data controller without resorting to communication channels and exercising their rights with respect to the data controller (which can already lead to increased compliance in many cases);

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The issue of direct marketing continues to require particular attention. These processes can be compared to an iceberg, where the impact of the visible part does not always seem to cause major problems, but the submerged part, less transparent, continues to require the special attention of the Inspection Service after analysis. In this context, the issue of "data brokers" in particular occupies a central position, where not only the correct basis but also the necessary transparency require special attention.

1 new file was submitted to the Inspection Service by the Management Committee.

13 new files were opened at the initiative of the Inspection Service (including 4 direct reports from whistleblowers made via the email address of the Inspection Service) and 2 new whistleblower reports were addressed to the Inspection Service via the Federal Ombudsman. In total, 6 whistleblower files have been opened.

A provisional measure was again imposed in 2023. This was a measure regarding a website managed outside the EU/EEA on which private details of Belgian politicians had been published.

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The novelty of 2023 lies in the reports related to whistleblower legislation (already addressed above). In 2023 (de facto from the second half of 2023), 24 reports were received in this regard, of which only 6 cases were actually related to this legislation (see also above). More figures can be found in the table below. It is noted that the influx of new cases is lower compared to the years 2021 and 2022.

For the current team of 11 people (a number only reached in December 2023), it became apparent that a sufficient balance in the workload (and workplace well-being) needed to be found between the number of inspectors and the number of cases:

The number of cases mentioned concerns only "inspection work." As previously indicated, the Inspection Service also conducts audits, the importance of which continues to grow, which also puts pressure on the number of inspection cases that can be processed. Indeed, different inspectors must share their time between this audit work and inspection missions - a decrease in numbers thus allows for more time to be dedicated to these audits (in fact, the Inspection Service also notes at the European level that the new legislation requires increased attention) - see also above for further explanation;

The Inspection Service has 11 inspectors only since the end of 2023, of which 2 have a specific ICT profile. The two profiles primarily support other colleagues, as increasingly, investigations involve both a legal component and a technical component. These specific technical investigations take some time; The decrease in the number of incoming cases has again allowed for a thorough examination of the most important cases - not only do the issues become more complex in terms of content but also at various procedural levels, the Inspection Service notes that some cases require more sustained attention.

In-depth work allows the Inspection Service to provide higher quality reports to the Litigation Chamber and the processing officer, resulting in a decrease in avoidable (substantive) disputes before the Market Court. More targeted confrontations of the processing officer during the investigation with the

conclusions of technical reports or reports on websites lead to better-reasoned and less contestable decisions before the Litigation Chamber and the Market Court. Focusing more on the quality of investigations rather than their quantity also allows for savings in time and resources.

In 2023, the Inspection Service had closed 85% of the cases. Although a longer processing period cannot be excluded for various reasons, it is preferable, as far as possible, not to let cases linger too long. Due to a decrease in the number of cases to be processed, thanks to experience/professionalism and greater efficiency, for example through dismissals, this percentage has been able to increase. The ratio between Dutch-speaking and French-speaking cases remains more or less equal in the sense that there are increasingly more Dutch-speaking cases, which sometimes causes fluctuations in the difference.

It is also particularly important that the execution time and backlog do not increase. With the number of incoming cases being lower, inspectors

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were also able to close several old cases and handle new cases.

However, the percentage of cases opened by the Inspection Service itself remains (too) low. What is new this year is that the Inspection Service has also begun to verify how the data controller has followed up on the substantive decision of the Contentious Chamber. This oversight is already increasing the current percentage.

Another recurring observation in this regard is that, due to the persistence of the high workload, the Inspection Service still has (too) little leeway to intervene proactively and open cases on its own initiative.

However, the Inspection Service indicates even more clearly than before that there are disadvantages to being primarily reactive and operating at "high volume," and that the intention to work in a more "proactive" manner by utilizing more investigative powers has so far been relegated to the background due to pressure, and is therefore still (too) limited.

An even higher rate of cases being dismissed could remedy this if the trend of dismissals continues, as well as the approval at the end of 2022 by the House of Representatives for an extension of the framework for the APD. This framework extension has (in practice) allowed for the effective engagement of a few individuals by the end of 2023, who have also been able to benefit from a necessary familiarization period.

The common thread remains that inspectors see the added value of opening more targeted cases on their own initiative compared to the more reactive approach aimed primarily at handling a high volume of complaints, as was applied at the launch of the Inspection Service in 2019.

Moreover, several ad hoc missions were also conducted in 2023 regarding participation in international working groups related to treatments for VIS and Eurodac and the development of audit and inspection methodologies. These specific missions have not been added to the table below:

Total Cases

Referral

Outcome

Language28

Cooperation

ChC DIRCO INS

Med Closed

Own

dismissal

Ongoing FR

NL

International Level COC

2018

70

67

2
1
70
30
0
20
50
12
1
2019
86
67
11
8
86
13
0
33
53
13
2
2020
153 129
17
7
147
27
6
75
78
7
0
2021
147
134
9
4
136
28
11
62
85
4
0
2022
102
87
9
6
77
35

25
 36
 66
 8
 0
 2023
 86
 70
 1
 13
 2
 32
 25
 54
 40
 46
 3
 0
 Total
 644 554
 49
 39
 2
 548
 158
 96
 266 378
 47
 3

(Note: the data from previous years have been slightly adjusted. Some cases are submitted at the end of the year and may therefore be counted)

28 Here, the language of the case manager is referred to.
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differently, hence the need for slight corrections in the statistics to adjust the overview). At the end of the investigation, the inspector concerned, in consultation with the Inspector General, prepares a report that is attached to the file. In addition to the investigative methods used, the report mentions the findings of the Inspection Service and the decision of the Inspector General.

In light of the findings mentioned, the Inspector General may make one of the following decisions:

1. forward the file to the president of the Contentious Chamber;
2. forward the file to the public prosecutor when the facts may constitute a criminal offense;
3. classify the file without further action;
4. forward the file to a data protection authority of another State.

From a technical standpoint, several investigation files were finalized in 2023 and forwarded to the Contentious Chamber for further action. The results of these investigations can be found in the information on the functioning of the Contentious Chamber and on the APD website. During the inspection phase, the confidentiality of the investigation applies, which explains why, in general, the Inspection Service has little or no opportunity to communicate about ongoing files.

During its investigation, the Inspection Service continues to receive various questions from the parties involved (complainants and lawyers). These questions concern the status and/or progress of an

investigation, a request for consultation during the investigation, and the questioning of the possibility—provided for in the LCA—for the Inspection Service to deepen the investigation beyond the scope of the complaint.

In response to these various questions, the Inspection Service has had to refer several times to Article 64 of the LCA, which stipulates that the inspection investigation is confidential until the moment the Inspector General submits his report to the Contentious Chamber.

To address some of these common questions transparently and consistently, they have been addressed in the public charter of the Inspection Service. The Inspection Service invites readers to review this document as it concisely and non-technically explains what one can/should expect from an inspection (investigation) and what one cannot/should not expect.

In this regard, it should be noted that the explanation provided by the Inspection Service in its Charter does not confer subjective rights to the person being questioned, such as a "right to classification without further action," and does not imply that the Inspection Service must discuss with the data controller how the investigation is conducted. Indeed, the legislator has granted the Inspection Service discretionary power to carry out its investigative missions as it sees fit, and therefore it does not generally fall to the persons being questioned to challenge the investigation method.

However, any potential concerns regarding the investigation method can be communicated to the Contentious Chamber during the adversarial phase. The Contentious Chamber remains completely independent of the investigation being conducted, which provides sufficient assurance to the data controller who may have objections regarding the modalities of the investigation.

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Contentious Chamber

The Contentious Chamber in Outline

The Contentious Chamber is the administrative litigation body of the APD (Article 32 of the LCA) and is tasked with intervening in a repressive manner in cases submitted to it, based on a complaint from a citizen or following an inspection initiated by the APD. The Contentious Chamber also deals with cases submitted to the APD by the authorities of European member states within the framework of the single contact point mechanism established by the GDPR, where the APD acts as the lead authority or concerned authority. In this regard, the Contentious Chamber has several instruments at its disposal: corrective measures and administrative fines. The procedure before the Contentious Chamber is conducted in accordance with the principles of procedural law.

The Contentious Chamber is composed, in addition to its president, of six external members who are appointed by the Chamber based on their particular expertise.

The Contentious Chamber has a unique structure that does not exist among market regulators in Belgium or among other supervisory authorities in the EU. This structure is hybrid in nature. The Contentious Chamber is a regulatory body, but the procedure is nearly judicial, particularly with a decision being made after the exchange of conclusions between the parties and often also after a hearing.

Online Research Platform for Care Providers

In 2021, the Contentious Chamber received several complaints against platforms that allow users to find nearby healthcare and support service providers or professionals with specific specializations, and then to make appointments. Several care providers filed a complaint with the APD against one of these platforms. They claimed that their personal data had been subject to unlawful processing and that the data controller had not appropriately addressed their right to erasure.

At the conclusion of its analysis, the Contentious Chamber found that the data controller could not invoke any valid legal basis for processing the personal data of care and support providers on its platform. The Contentious Chamber determined that the data controller could not rely on legitimate interest as a legal basis for the disputed processing. Indeed, the processing did not meet two of the three conditions required for legitimate interest to be validly invoked as a legal basis. The Contentious

Chamber acknowledged that the data controller does pursue a legitimate interest and that the personal data processed (name, first name, and specialty) are necessary to allow users of the website to contact the relevant care provider. However, the conditions related to the balancing of interests were not met. The Contentious Chamber recognized that the personal data in question are public data, but their public nature does not negate the need for appropriate safeguards in their processing. The fact that personal data is publicly accessible is a factor that can be considered during the assessment, particularly if their publication was accompanied by a reasonable expectation of subsequent use of the data for certain purposes. In this regard, the Contentious Chamber observes that the disputed processing does not fall within the reasonable expectations of the individuals concerned. The contact details of professional practitioners are published.

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on their own website or that of their group practice or hospital, with an appropriate legal basis for this processing. They cannot reasonably expect that this data will be processed later for other purposes, such as the publication of this personal data by commercial parties (in this case based on the commercial interest of the data controller). In this regard, the Contentious Chamber also took into account the indefinite retention periods in the privacy policy of the data controller.

Furthermore, the DPA found a violation of the obligation to facilitate the rights of the data subjects. Due to these violations, a fine of 10,000 euros and an injunction to cease the disputed processing were imposed.

This decision has been appealed to the Market Court. No final decision has yet been rendered in this matter as the Market Court is awaiting a decision from the Constitutional Court regarding the use of languages. The assessment on the merits by the Contentious Chamber is not called into question. Reference can also be made to decision 149/2023 of the Contentious Chamber, in which a decision was rendered against a data controller conducting similar processing activities. This is currently also subject to an appeal before the Market Court.

Read decision 75/2023

Complaint for refusal of access to audio recordings

In 2023, the Contentious Chamber delved into the right of access.

The complainant is a client of the data controller and has entered into two contracts under which the data controller is tasked with developing a website and producing corporate videos for the complainant. In the context of these contracts, telephone conversations took place regarding the functional development and design of this website and these videos. These telephone conversations were recorded by the data controller for the proper execution of the complainant's wishes under the contracts. However, the complainant claims that he was not aware of these recordings. Since 2021, a dispute has arisen between the complainant and the data controller regarding the execution of the contracts. In this context, the complainant exercised his right of access concerning the telephone recordings. The data controller refused to provide a copy of the telephone recordings but offered the complainant the opportunity to listen to the recordings in its offices, after which the complainant filed a complaint with the DPA. In the complaint, the complainant challenges the lawfulness of the recordings of the telephone conversations on the one hand and the lack of an appropriate response to his access request on the other hand.

The Contentious Chamber first considered that the disputed processing, the recording of the telephone conversations, was lawful given its necessity for the execution of the aforementioned two contracts. Regarding the right of access, the Contentious Chamber recalled that the GDPR requires the data controller to provide the data subject with a faithful and comprehensible reproduction of the personal data being processed.

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the purpose of the processing. Despite this broad notion of a copy, and notwithstanding the fact that it is the most important modality through which access must be granted, other modalities may be

appropriate in certain circumstances. The Contentious Chamber analyzed these exceptions and found that none of them applied in this case. The Contentious Chamber held that the data controller cannot invoke the rights and freedoms of its employees to refuse to provide a copy to the complainant. The Contentious Chamber emphasized that, given the broad application and interpretation of the right of access, the purpose for which the right of access was exercised should not be considered a condition for exercising this right. It is therefore not for the data controller to verify why the data subject wishes to access their personal data, but only to determine the subject matter of the access request and whether or not they process personal data of the data subject. Subsequently, the Contentious Chamber also noted the absence of any professional secrecy that would prevent a faithful and comprehensible reproduction from being communicated to the complainant. Contrary to what the data controller claimed, the Contentious Chamber found that there was also no abuse of rights since the essential purpose of the exercised right of access was not to obtain an unjustified advantage. The Contentious Chamber found that exercising the right of access was the only way for the complainant to know what personal data was processed by the data controller and how this processing took place, if applicable. Given that the contacts were made by phone, the complainant did not have a written record of the processing of their data. Furthermore, the DPA found certain violations in the area of communication of information to the data subject.

In light of the above, the Contentious Chamber imposed an administrative fine of 40,000 euros. During the appeal process, the Market Court fully upheld this decision of the Contentious Chamber.

Read decision 57/2023

Complaint regarding the transfer of personal data by the Federal Public Service Finance to the American tax authorities in the context of the application of the "FATCA" agreement.

Two complaints were filed with the DPA against the Belgian Ministry of Finance denouncing the illegality of the transfer of personal banking data to the American tax authorities (Internal Revenue Service - IRS) in the context of the application of the intergovernmental agreement "FATCA" concluded between the Belgian State and the United States.

In its decision 61/2023, the Contentious Chamber of the DPA concluded that the processing of personal data by the Ministry of Finance, including their transfer to the IRS, was illegal, as these processes violate the principles of purpose, necessity, and minimization, as well as the rules of Chapter V of the GDPR (absence of appropriate safeguards governing the transfer to the United States present in the FATCA agreement). The decision dismisses the application of Article 96 of the GDPR invoked by the Ministry of Finance, clarifying the contours of this transitional exception provision with regard to its material scope (limited to the FATCA agreement, excluding autonomous grievances such as lack of information, absence of Data Protection Impact Assessment (DPIA), and the implementation of the accountability principle) as well as its temporal scope (the effect of...

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The standstill of Article 96 of the GDPR diminishing over time, considering the obligation of loyal cooperation of EU Member States, the impact of Article 96 of the GDPR on the competencies of data protection authorities and the effectiveness of the GDPR, the case law of the CJEU subsequent to May 24, 2016, may also be taken into account in light of common concepts to Directive 95/46/EC and the GDPR). Given the unlawfulness of the processing observed, the Litigation Chamber decides to order the prohibition of the processing (including transfers to the IRS) of data of the complainant and Belgian accidental Americans carried out in execution of the "FATCA" agreement and the Law of December 16, 2015, in application of both the Belgian organic law of the DPA and Article 58.2 f) and j) of the GDPR, this prohibition being the only measure capable of putting an end to the observed unlawfulness that the Litigation Chamber is also required to adopt in accordance with the CJEU's Schrems II ruling. A violation of Article 14.1-2 combined with Article 12.1 of the GDPR is also noted in that the Ministry of Finance did not sufficiently inform the individuals concerned by the data processing carried out in execution of the "FATCA" agreement. The Litigation Chamber also finds a violation of Article 35.1 of the GDPR for lack of DPIA as well as a violation of Articles 5.2 and 24 of the GDPR (accountability). For these breaches, the Litigation Chamber issues a reprimand to the Ministry of Finance

accompanied by orders for compliance. It should be noted that an appeal for suspension and annulment has been filed against this decision before the Market Court (CdM - Court of Appeal of Brussels), the appellate body for decisions of the Litigation Chamber. The Market Court granted the request for suspension of the decision (provisionally enforceable by default) considering the serious grounds invoked by the Ministry of Finance as well as the risk of serious harm since the absence of annual transfer by the Ministry of Finance would place it in breach of its international obligations.²⁹ In the meantime, the Market Court has issued a ruling indicating that the decision must be reviewed by the Litigation Chamber, but this time with a more in-depth justification of the reasons why the Litigation Chamber did not follow the conclusions of the Inspection Service. The Litigation Chamber is currently examining how it will incorporate this justification into a new decision.

Read decision 61/2023

Right to Erasure from a Baptism Register

A baptized person has requested to be removed from all files of the Roman Catholic Church, including the baptism register, from the Diocese of Ghent. However, the Church does not delete data from the baptism registers but rather adds a note in the margin of the register reflecting the person's wish to leave the Church.

The right to erasure of data (Article 17 of the GDPR) is not absolute and can only be exercised under certain conditions. The Church believes that it has a legitimate interest in retaining the data recorded in the baptism register, as this retention is necessary for the purpose of data processing, and that the conditions applicable to a request for erasure are therefore not met in such cases. The Church

29 Market Court, interlocutory ruling of June 28, 2023, 2023/AR/801.

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invokes as the legal basis for the processing of baptism data its legitimate interest in preventing potential fraud (identity fraud) in the sense that, according to Catholic doctrine, a baptism can only take place once. This would necessitate the maintenance of a register of this data.

The Contentious Chamber confirmed that there is indeed a legitimate interest for the Church.

However, this legitimate interest can only serve as a basis for data processing if the processing is necessary to achieve this objective, and if the interest of the data subject (here: the complainant) does not outweigh the interest of the organization processing the data (here: the Diocese of Ghent).

In this regard, the Contentious Chamber concluded that neither the requirement of necessity nor the balancing of interests was met. On the one hand, given that the register is only maintained in paper form within a single parish (the one where the baptism took place), it is not always possible to verify whether the baptism occurred or not. The data processing as it is currently performed does not, in fact, prevent a person from receiving the same sacrament twice, and it is therefore not appropriate a priori to achieve the intended purpose. On the other hand, the lifelong retention of the complainant's data—including data that is not strictly necessary to establish whether a person is already baptized—is disproportionate from the moment the complainant explicitly indicates a desire to distance themselves from the Church.

Consequently, the processing is deemed unlawful, which implies that the complainant can successfully exercise their right to erasure of data. Furthermore, the data must also be erased when a legitimate objection to data processing is raised, which is indeed the case here.

The Contentious Chamber ordered the Diocese of Ghent to comply with the complainant's request to exercise their right to object to the processing of their data, and to the request to erase their data.

This decision is currently subject to appeal before the Market Court (Court of Appeal of Brussels).

Read decision 169/2023

Transactions of the Contentious Chamber, the transaction policy, and the "Cookie Check-list"

In 2023, the Contentious Chamber further improved the transaction instrument and used it in several concrete cases. In 2022, the Contentious Chamber had also made several transaction proposals, several of which had then successfully concluded.

In 2023, a transaction proposal was made in eight cases following complaints related, broadly

speaking, to the placement of cookies and obtaining lawful consent for the placement of these cookies. In 2023, unlike previous transaction procedures, substantive conditions were also proposed to address certain issues for the complainants and to take into account the purposes of data protection legislation. At that time, five of the eight cases resulted in a transaction, in some cases after intrinsic adjustments to the conditions of the transaction. In cases where the transaction procedure does not succeed, the case continues in another manner.

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In the eight cases mentioned above, the Litigation Chamber referred to the APD's Cookie Checklist, as well as to the Report on the work of the "Cookie Banner Taskforce" of the European Data Protection Board (or "EDPB") in order to propose a solution to the issues raised by the complainants. At the stage of the procedural phase prior to the substantive phase, this solution is based solely on a preliminary analysis by the Litigation Chamber, which may not necessarily be the same if the facts were assessed substantively.

Following the increased use of the settlement tool, the Litigation Chamber also drafted and published a general settlement policy at the end of 2023. This policy is aimed at a broad interested audience, but particularly also at the parties involved in a procedure before the APD's Litigation Chamber, within which a settlement procedure could be initiated.

The settlement policy defines the legal framework, procedural and intrinsic benefits, as well as the procedural framework of the settlement procedure.

An example of a benefit of resorting to a settlement is that the less burdensome settlement procedure can potentially satisfy a larger number of complainants and reduce the total number of cases dismissed by the Litigation Chamber for reasons of opportunity. This is obviously the case only to the extent that most parties adopt a constructive attitude during the procedure.

Regarding the procedural framework of the settlement procedure, it should be emphasized that - unlike other regulators - the complainant is assigned a formal and substantial role in the settlement between the regulator (in this case, the APD's Litigation Chamber) and the defendant party. This arises from the expanded role assigned to the complainant under the GDPR by the European legislator, for example in light of Article 77 of the GDPR.

Dismissal of Certain Old Cases

Given that the Litigation Chamber exercises its powers with a limited number of staff, the backlog of cases has increased over the years. The cases handled by the Litigation Chamber are often complex (in terms of technical and procedural aspects). Each decision of the Litigation Chamber also requires precise reasoning, in accordance with the legislation and the requirements set by the Market Court. In 2022, the Litigation Chamber adopted 189 decisions. The juxtaposition of this figure with the number of complaints (604 in 2022) received each year by the APD's Frontline Service explains why a significant backlog of cases has accumulated over the years. During the course of 2023, the Litigation Chamber decided to respond to this backlog.

In the spring of 2023, the decision was made to simultaneously dismiss a large number of cases. As part of a project related to monitoring the backlog of cases, the Litigation Chamber individually found in 389 cases that it was no longer appropriate to continue processing them, notably because none of these cases had been processed for more than a year and because the circumstances of the case were not particularly priority or socially relevant.

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In each of these cases, the Litigation Chamber has established transparency as a central element: thus, it has clearly informed each concerned complainant of their rights. The decision mentioned the possibility of appealing against the decision to dismiss the case as well as the possibility of filing a new complaint, especially if the complaint was still relevant and if there were new indications of a practice contrary to the GDPR.

The dismissal of a large number of cases was justified by public interest. Ensuring the individual

interests of the complainant whose rights are violated is indeed only possible when a smooth and qualitative flow of complaints is generally guaranteed.

The DPA is indeed not a court. The reason why the complaint mechanism has been placed in the hands of an authority is precisely to allow for certain strategic choices to be made in a specialized manner and to be able to intervene effectively in a complex and digitized social context. Everyone has the right to effective data protection, and this method allows the Litigation Chamber, in particular, to handle cases impacting a larger number of people in society, as well as to intervene more quickly and firmly in new cases (of complaint).

It is important to emphasize the exceptional nature of this project. The Litigation Chamber is working on complementary measures to avoid being faced in the future with an excessively large backlog of cases that have been pending for a long time. Thus, the Litigation Chamber continues to develop the legally mandated settlement (with the conditions and modalities possible in this context), just as the DPA continues to work on general prevention and to encourage dispute resolution through mediation whenever possible. The Litigation Chamber is also committed to sharpening the assessment of the appropriateness of its follow-up decisions early in the procedure in order to minimize future processing times. In this context, the priorities generally set by the DPA will serve as a guide. The decision to dismiss a case will also not be avoided in this context. The implementation of these measures, if necessary with the help of other services of the DPA, must ensure that the best possible service is offered to the citizen within a framework of limited resources.

Regarding the procedure

Administrative fines

On March 24, 2023, the EDPB adopted guidelines intended to complement the previously established guidelines for the application and imposition of administrative fines by DPAs.

The GDPR prescribes that the amount of a fine must, in each case, be effective, proportionate, and dissuasive (Article 83, paragraph 1 of the GDPR). The EDPB has developed a five-step method to complement Article 83 of the GDPR. The objective is to achieve a more harmonized approach, even though authorities have some discretion in applying the steps.

Step 1

Identify the processing activities in the case in question and assess the application of Article 83.3 GDPR.

Step 2

Determine the starting amount for the subsequent calculation based on an assessment of the following elements:

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the distribution referred to in Articles 83.4 to 83.6 of the GDPR;

the severity of the violation under Article 83.2, points a), b) and g) of the GDPR;

the turnover of the company as a relevant element to be considered for imposing an effective, dissuasive, and proportionate fine under Article 83.1 of the GDPR.

Step 3

Examine whether there are aggravating and mitigating circumstances related to the past or current behavior of the data controller/processor and increase or decrease the fine accordingly.

Step 4

Establish the relevant maximum legal amounts for the different processing activities. This maximum amount cannot be exceeded as a result of increases applied in the previous or subsequent steps.

Step 5

Assess whether the final calculated amount of the fine is effective, dissuasive, and proportionate, as required by Article 83.1 of the GDPR, and increase or decrease the fine accordingly.

The guidelines further elaborate on the existence of a possible concurrence of violations. When should behavior be considered a single violation because it involves the same processing activities or related activities, and when are the alleged acts multiple?

This step also deepens the assessment of the severity of a violation. Article 83.2 of the GDPR already includes factors that must also be taken into account, such as the nature, severity, and duration of the violation, whether the violation was committed intentionally or negligently, and the categories of personal data involved in the violation. The assessment of these elements influences the appropriate starting amount, which can be low, medium, or high. Generally, the more severe the violation in the relevant category, the higher the starting amount is likely to be.

Throughout the guidelines, it is emphasized that the effective quantification of the fine depends on all elements collected during the investigation as well as other considerations related to the prior experience of the supervisory authorities in terms of fines.

The Contentious Chamber has already relied on the adapted guidelines in several decisions in 2023. It thus applies a more structured and effective method for setting fines in its decisions. By 2024, we are exploring how this can be applied in a standardized manner (the recent decision 07/2024 is already an example).

Informex Judgment of the Constitutional Court

In its judgment No. 5/2023 of January 12, 2023, the Constitutional Court decided that interested third parties must also have a right to effective remedy. This idea was taken up by the legislator who inserted an amendment into the LCA, allowing interested third parties to appeal a decision of the Contentious Chamber.

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Fine Policy

Finally, it should be noted that the Market Court is adopting an evolving attitude regarding the sanctioning competence of the Contentious Chamber. It has notably criticized the reasoning used by the Contentious Chamber to impose administrative fines. In this regard, two important judgments were rendered in 2023.

In the SNCB judgment (2022/AR/723) of the Market Court on June 14, 2023, the amount of the fine was reduced to a symbolic euro. The APD appealed to the Supreme Court against this decision in order to obtain clarification on the applicable rules.

In the Proximus judgment (2020/AR/1160) of September 6, 2023, the Market Court converted the fine imposed by the Contentious Chamber into a reprimand. Given these developments, it is essential to maintain a structured and coherent fine policy. The aforementioned EDPB guidelines should contribute to this.

The Contentious Chamber is currently examining how to better meet the requirements of the Court. The judgment in the Proximus case already seems to be a step in the right direction.

Achievements in Numbers

The Contentious Chamber published 171 decisions in 2023. The graph below explains the long duration of a procedure and the delays this entails. It indicates the number of decisions per year specifying the year of commencement of the

cases underlying the decisions.

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Nature of the cases processed that led to the decisions:

177 complaint cases (national)

2 data breach cases

2 international complaints for which the APD is competent

The 171 decisions resulted in the following sanctions:

As to the substance

Number of
sanctions

Light

Number of
sanctions

Art. 100. §1,1°

(No further action)

12

Art. 95. §1,2°

(Settlement)

5

Art. 100. §1,2°

0

Art. 95. §1,3°

(No further action)

81

Art. 100. §1,3°

0

Art. 95. §1,4°

(Warning)

30

Art. 100. §1,4°

0

Art. 95. §1,5°

(Order - comply with
rights requests)

51

Art. 100. §1,5°

(Warnings and reprimands)

17

Art. 95. §1,6°

0

13

14

11

5

10

1

26

40

33

12

1
32
62
46
10
43
72
19
49
53
87
0
20
40
60
80
100
120
140
160
180
200
Decisions 2018
Decisions 2019
Decisions 2020
Decisions 2021
Decisions 2022
Decisions 2023
Evolution of Contentious Chamber Decisions
Year of commencement 2018
Year of commencement 2019
Year of commencement 2020
Year of commencement 2021
Year of commencement 2022
Year of commencement 2023
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Art. 100. §1,6°
(Order – comply with rights requests)
3
Art. 95. §1,7°
0
Art. 100. §1,7°
0
Art. 100. §1,8°
(Order – suspension, limitation, or prohibition of processing)
2
Art. 100. §1,9°
(Order – compliance)
3
Art. 100. §1,10°
0

Art. 100. §1,11°

0

Art. 100. §1,12°

0

Art. 100. §1,13°

(Fine)

3

Art. 100. §1,14°

0

Art. 100. §1,15°

0

In total, the amount of fines imposed amounts to €80,000.00.

In addition to its own decisions, the Litigation Chamber also collaborates on decisions with other European data protection authorities. The Litigation Chamber also contributed in 2023 to 4 information cases and 114 complaints at the international level, in which the DPA was the "concerned authority" (CSA). Staff members of the Litigation Chamber were also closely involved in the development of cooperation in oversight within the EDPB.

In 2023, 18 appeals were filed with the Market Court against decisions of the Litigation Chamber. In 2023, the Market Court also ruled in 16 appeal procedures, in which 12 final judgments and 4 interim judgments were issued, and 4 decisions were - fully or partially - annulled.

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Figures of cases received/started

A quality control was performed on the figures, which is why the numbers differ from those reported in previous annual reports, as a correction was made for this purpose.

Requests for information

In 2023, the DPA received 3,069 requests for information.

In 25% of cases, the question was posed in the context of image processing and cameras.

Furthermore, 18% of the questions concerned business practices (direct marketing, what are my rights as a data subject, ...). 13% of the questions asked concerned privacy within the professional sphere.

6128

5016

4107

4207

2985

3069

0

1000

2000

3000

4000

5000

6000

7000

2018

2019

2020

2021

2022

2023

Evolution of information requests received

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Opinions

In 2023, the DPA received nearly 611 requests for opinions from public authorities (the calculation of requests is accurate to one or two units, considering the change in the processing and publication of standard opinions during the year, following the influx of requests starting in February 2023).

The table below indicates the nature of the requesting institution as well as the language in which the request was addressed and processed.

Requests for opinions in 2023

by linguistic role

FR

NL

DE

Total

Federal level

96

124

0

220

Walloon Region

83

0

0

83

Brussels-Capital Region

54

17

0

71

German-speaking Community

0

0

23

23

Federation Wallonia-Brussels

25

0

0

25

Flemish Authority

0

189

0

189

Total by linguistic role

258

330

23

611

Recommendations

In 2023, 1 recommendation was initiated.

Approval cases

In 2023, the DPA opened 4 approval cases.

225

192

149

279

321

611

0

100

200

300

400

500

600

700

2018

2019

2020

2021

2022

2023

Evolution of requests for opinions

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Mediation and complaint handling

In 2023, the DPA received 694 complaints and opened 214 mediation cases.

The areas in which most mediation cases were opened are as follows:

- Business practices (e.g., direct marketing)
- Telecommunications (e.g., cookies and social media)
- Image processing and cameras

The areas on which most complaints were made are as follows:

- Business practices (e.g., direct marketing)
- Image processing and cameras
- Data processing within the professional sphere

18

4

3

5

5

4

1

2

4

10

8

1

4

1

5

2
0
0
0
0
0
1
1
2
0
0
0
5
10
15
20
25
2018
2019
2020
2021
2022
2023

Evolution of initiated approval cases

BCR

DPIA

Code of conduct

Standard contractual clauses

Administrative regulation

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Explanation of the graph: in 2018 and 2019, complaint and mediation cases were not yet counted separately. In 2021, an exceptionally high number of complaints was recorded regarding a specific data breach within the Facebook social network (1,120 complaints).

Monitoring of data breaches

In 2023, the DPA received 1,292 notifications regarding data breaches.

The table below indicates the most frequent causes of reported data breaches. Nearly half of the reported data breaches were caused by human error.

Most frequent causes of data breaches

Number

Human error

43%

Hacking, phishing & malware

32%

Improper use of access rights

9%

385

459

685

1928

604
694
0
500
1000
1500
2000
2500
2018
2019
2020
2021
2022
2023

Evolution of the number of complaints and mediation requests received (requests)

Complaint cases

Mediation

458
877
1054
1435
1426
1292
0
200
400
600
800
1000
1200
1400
1600
2018
2019
2020
2021
2022
2023

Evolution of data breach cases

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DPO

In 2023, the DPA received 1,459 DPO notifications (these notifications concerned both organizations notifying a DPO for the first time and organizations modifying a previously notified DPO). As of December 31, 2023, 8,749 organizations with an active data protection officer were registered with the DPA.

Comparison 2022-2023

Type
2022
2023
Difference

Information

2985

3069

+3%

Mediation

177

214

+21%

Complaints

604

694

+15%

Data breach cases

1426

1292

-9%

Requests for opinions

321

611

+90%

DPO notifications

1525

1459

-4%

Inspection cases

101

86

-15%